

HOUSE No. 4744

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 13, 2025.

The committee on Telecommunications, Utilities and Energy, to whom were referred the petition (accompanied by bill, House, No. 3459) of Tackey Chan and others relative to competitive energy supply; the petition (accompanied by bill, House, No. 3469) of Mark J. Cusack relative to solar energy storage permit applications and inspections; the petition (accompanied by bill, House, No. 3475) of Marjorie C. Decker and others relative to the transition to clean energy and the training of employees on alternative energy generation and distribution; the petition (accompanied by bill, House, No. 3493) of Sean Garballey and Daniel Cahill relative to peak energy storage; the petition (accompanied by bill, House, No. 3520) of Jack Patrick Lewis and others relative to distributed energy resources in the commonwealth; the petition (accompanied by bill, House, No. 3521) of Jack Patrick Lewis and others relative to the distribution of energy resources in communities; the petition (accompanied by bill, House, No. 3534) of Frank A. Moran and others relative to electric ratepayer protections; the petition (accompanied by bill, House, No. 3542) of Steven Owens relative to the installation of renewable and alternative energy generating sources; the petition (accompanied by bill, House, No. 3549) of Orlando Ramos for legislation to remove woody biomass from the greenhouse gas emissions standard for municipal lighting plants; the petition (accompanied by bill, House, No. 3552) of David Allen Robertson relative to repealing the alternative energy portfolios standard; the petition (accompanied by bill, House, No. 3555) of Jeffrey N. Roy relative to reporting on funds received from the Clean Energy Standard and future Clean Heat Standard program; and the petition (accompanied by bill, House, No. 3556) of Jeffrey N. Roy and others for an investigation by a task force (including members of the General Court) relative to the current and future cost of electricity, reports recommending that the accompanying bill (House, No. 4744) ought to be pass.

For the committee,

MARK J. CUSACK.

HOUSE No. 4744

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to energy affordability, clean power and economic competitiveness.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The general court finds and declares that:

2 (a) federal actions related to offshore wind, including the suspension of new approvals

3 for offshore wind projects and the reconsideration of previously approved offshore wind
4 projects and designated offshore wind areas have created regulatory uncertainty, delayed
5 construction schedules, and threatened hundreds of millions of dollars in private investment for
6 offshore wind projects in the commonwealth;

7 (b) the United States Department of Transportation cancelled a previously-awarded
8 \$34,000,000 grant intended to support the development of an offshore wind staging and port
9 facility in the City of Salem, thereby disrupting an important component of the commonwealth's
10 strategy to build regional supply-chain capacity and delaying job creation, private-sector
11 investment and regional industrial growth;

(c) the regional independent grid system operator, ISO-New England, has stated that as demand for electricity grows, New England must maintain and add to its energy infrastructure to ensure system reliability and that delays in the availability of new resources, regardless of technology, will adversely affect the region's economy and industrial growth;

(d) the United States Environmental Protection Agency has terminated \$156,000,000 in funding for the Solar for All Program in Massachusetts, hindering solar development in low-income and historically disadvantaged communities;

(e) the United States has withheld approximately \$63,000,000 in funding from the commonwealth to develop electric vehicle charging infrastructure under the national electric vehicle infrastructure program, threatening the commonwealth's ability to deploy the charging stations needed to meet its clean transportation goals;

(f) the United States Congress has enacted legislation accelerating the phase-out of clean electricity investment and production tax credits for offshore wind and solar projects, altering advanced manufacturing production credits for offshore wind components, eliminating residential clean energy and personal electric vehicle tax credits, and constraining states' authority to adopt more rigorous vehicle emissions standards, together erecting substantial barriers to deployment of renewable generation, electrification of vehicles and homes, and private investment in the clean energy sector;

(g) the cumulative effect of these federal actions threaten the commonwealth's planned jobs, supply-chain development, emissions reductions, and energy-equity goals, and materially increases the cost, time, regulatory risk and ratepayer burden of advancing clean energy objectives; and

(h) the commonwealth must establish emissions reduction goals that responsibly advance progress toward the 2050 targets while balancing environmental objectives with the need to avoid undue financial burden on ratepayers, and to ensure that the benefits and costs of the clean energy transition are shared equitably across all communities, with particular attention to low-income households and those historically overburdened by energy and environmental inequities.

SECTION 2. Chapter 21N of the General Laws, as so appearing, is hereby amended by striking out section 3B and inserting in place thereof the following subsection:-

Section 3B. Not later than February 15 of every third year of each plan approved under section 21 of chapter 25, the secretary shall set a goal, expressed in tons of carbon dioxide equivalent, for the succeeding plan's necessary contribution to meeting each statewide greenhouse gas emissions limit and sublimit adopted pursuant to this chapter, provided, however for the 2025 to 2027 plans and the 2028 to 2030 plans approved under section 21 or chapter 25, this goal shall be advisory, non-binding, and non-enforceable and shall not adversely impact (i) the affordability of energy, utility, or related costs for residential ratepayers, including low-income and fixed-income households, and (ii) the operating costs or economic competitiveness of Massachusetts businesses, including commercial, industrial, and small business customers.

SECTION 3. Said chapter 21N is hereby further amended by adding the following section:-

Section 13. (a) All state agencies, departments, authorities, and instrumentalities with jurisdiction over energy, climate, emissions, utilities, building standards, portfolio standards, transportation electrification, or related regulatory actions shall be subject to this section.

(b) No regulation, administrative action, program implementation, procurement requirement, or policy issued by a state entity under this chapter or any other general or special law undertaken to comply with or contribute to the compliance of statewide greenhouse gas emission limits and sublimits established under this chapter or to advance the commonwealth's clean energy goals, shall take effect unless the entity has determined, based on reasonably available data, that such action will not impose unreasonable adverse impacts on:

(i) the affordability of energy, utility, or related costs for residential ratepayers, including low-income and fixed-income households; or

(ii) the operating costs or economic competitiveness of Massachusetts businesses, including commercial, industrial, and small business customers.

(c) Prior to any such action taking effect, the agency or department shall prepare an affordability and competitiveness assessment that, at a minimum:

(i) identifies expected cost impacts on residential, commercial, and industrial ratepayers;

(ii) evaluates whether those impacts are reasonable in light of projected benefits, available funding mechanisms, and cost-mitigation measures;

(iii) considers cumulative impacts in combination with existing requirements; and

(iv) consults with relevant stakeholders, including ratepayer advocates, business organizations, and utilities, as appropriate.

(d) If the assessment identifies a potential for unreasonable adverse impacts, the agency shall either:

(i) modify the proposed action to avoid or mitigate such impacts; or

(ii) adopt alternative compliance pathways, timelines, or cost-containment measures to ensure affordability and competitiveness are preserved.

(e) The completed assessment shall be made publicly available at least 30 days before the final adoption or implementation of the proposed action.

(f) Failure to comply with the requirements of this section shall constitute grounds for administrative reconsideration or judicial review under chapter 30A.

(g) Nothing in this section shall be construed to prohibit the Commonwealth from pursuing long-term greenhouse gas reduction, renewable energy deployment, or energy-efficiency measures, provided such actions comply with the affordability and competitiveness standard established herein.

(h) For purposes of this section, the social value of emissions reductions shall only be considered where such reductions are demonstrably identified by said entity and realizable from non-carbon energy sources.

SECTION 4. Section 1A of chapter 25 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following sentence:-

In balancing these priorities, the department shall be authorized to limit the scope and scale of programs offered by gas and electric companies to meet statewide gas greenhouse gas emission limits and sublimits established pursuant to chapter 21N, to the extent that gas or electric bill impacts associated with such individual programs, or such programs in aggregate, are found to be unreasonable based on the total gas or electric bills that would otherwise result.

SECTION 5. Subsection (a) of section 19 of chapter 25 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended in lines 28 to 32 by striking out the words “; provided, however, that when determining cost-effectiveness, the calculation of program benefits shall include calculations of the social value of greenhouse gas emissions reductions, except in the cases of conversions from fossil fuel heating and cooling to fossil fuel heating and cooling”.

SECTION 6. Subsection (b) of section 19 of chapter 25 of the General Laws, as so appearing, is hereby amended in lines 45 to 49 by striking out the words “provided, however, that when determining cost-effectiveness, the calculation of program benefits shall include calculations of the social value of greenhouse gas emissions reductions, except in the cases of conversions from fossil fuel heating and cooling to fossil fuel heating and cooling”.

SECTION 7. Subsection (c) of section 19 of chapter 25 of the General Laws, as so appearing, is hereby amended by inserting after the second sentence the following sentence:-
Properties owned by for-profit entities that rent such premises to low-income customers shall be served through the residential or commercial programs as appropriate to their metering configuration, rather than through the low-income programs.

SECTION 8. Subsection (c) of section 19 of chapter 25 of the General Laws, as so appearing, is hereby amended in lines 67 to 71 by striking out the words “; provided, however, that when determining cost-effectiveness, the calculation of benefits shall include calculations of the social value of greenhouse gas emissions reductions, except in the cases of conversions from fossil fuel heating and cooling to fossil fuel heating and cooling”.

SECTION 9. Said chapter 25 of the General Laws is hereby amended by striking out section 21, as so appearing, and inserting in place thereof the following section:-

Section 21. (a) To mitigate capacity and energy costs for all customers, the department shall ensure that, subject to subsection (c) of section 19, electric and natural gas resource needs shall first be met through all available energy efficiency and demand reduction resources that are cost effective or less expensive than supply. The cost of supply shall be determined by the department with consideration of the average cost of generation to all customer classes over the previous 24 months.

(b)(1) Every 3 years, on or before March 31, the electric distribution companies and municipal aggregators with certified efficiency plans shall jointly prepare an energy efficiency investment plan and the natural gas distribution companies shall jointly prepare a natural gas efficiency investment plan. Each plan shall provide for the acquisition of all available energy efficiency and demand reduction resources that are cost effective or less expensive than supply and shall be prepared in coordination with the energy efficiency advisory council established by section 22. Each plan shall provide for the acquisition, with the lowest reasonable customer contribution, of all of the cost effective energy efficiency and demand reduction resources that are available from municipalities and other governmental bodies.

(2) A plan shall include: (i) an assessment of the estimated lifetime cost, reliability and magnitude of all available energy efficiency and demand reduction resources that are cost effective or less expensive than supply; (ii) the amount of demand resources, including efficiency, conservation, demand response and load management, that are proposed to be acquired under the plan and the basis for this determination; (iii) the estimated energy cost

139 savings that the acquisition of such resources will provide to electricity and natural gas
140 consumers, including, but not limited to, reductions in capacity and energy costs and increases in
141 rate stability and affordability for low-income customers; (iv) the requirement that eligibility for
142 any other residential program offer requires a demonstration of cost-effective weatherization and
143 air-sealing, either by participation in the program; by the age of the building or in a manner so
144 directed by the program, (v) a description of programs, which may include, but which shall not
145 be limited to: (A) efficiency and load management programs, including energy storage and other
146 active demand management technologies; (B) demand response programs; (C) programs for
147 research, development and commercialization of products or processes which are more energy-
148 efficient than those generally available; (D) programs for development of markets for such
149 products and processes, including recommendations for new appliance and product efficiency
150 standards; (E) programs providing support for energy use assessment, real time monitoring
151 systems, engineering studies and services related to new construction or major building
152 renovation, including integration of such assessments, systems, studies and services with
153 building energy codes programs and processes, or those regarding the development of high
154 performance or sustainable buildings that exceed code; (F) programs for the design, manufacture,
155 commercialization and purchase of energy-efficient appliances and heating, air conditioning and
156 lighting devices; (G) programs for planning and evaluation; (H) programs providing commercial,
157 industrial and institutional customers with greater flexibility and control over demand side
158 investments funded by the programs at their facilities; (I) programs for public education
159 regarding energy efficiency and demand management; and (J) programs that result in customers
160 switching to renewable energy sources or other clean energy technologies including, but not
161 limited to, programs that combine efficiency with renewable generation and storage; provided,

however, that not more than 1 per cent of the fund shall be expended for items (C) and (D) collectively, without authorization from the advisory council; (vi) a proposed mechanism which provides performance incentives to the companies based on their success in meeting or exceeding the goals in the plan; (vii) the budget that is needed to support the programs; (viii) a fully reconciling funding mechanism which may include, but which shall not be limited to, the charge authorized by section 19; (ix) the estimated amount of reduction in peak load that will be reduced from each option and any estimated economic benefits for such projects, including job retention, job growth or economic development; (x) data showing the percentage of all monies collected that will be used for direct consumer benefit, such as incentives and technical assistance to carry the plan; (xi) consideration of historic and present program participation by low and moderate-income households, including households that rent; (xii) strategies and investments that the programs will undertake to achieve equitable access and reduce or eliminate any disparities in program uptake; and (xiii) a method for capturing the following data to assess the plan's services to low-income ratepayers: (A) the total number of ratepayers per municipality served; (B) the total energy efficiency surcharge dollars paid by ratepayers as part of their utility bills per municipality served; and (C) the total incentives provided by the program administrators by municipality served, delineated by utility and sector, including residential, residential low-income, commercial and industrial. With the approval of the council, the plan may also include a mechanism to prioritize projects that have substantial benefits in reducing peak load, reducing the energy consumption or costs of municipalities or other governmental bodies, maximizing net equity impacts or that have economic development, job creation or job retention benefits.

(3) A program included in the plan shall be screened through cost-effectiveness testing which compares the value of program benefits to the program costs to ensure that the program is

designed to obtain energy savings and other benefits with value greater than the costs of the program. Program cost effectiveness shall be reviewed periodically by the department and by the energy efficiency advisory council. For the purposes of reviewing cost effectiveness, programs shall be aggregated by sector. Any sector shall be deemed cost-effective when the present value of the lifetime benefits of the sector is greater than or equal to the present value of the lifetime costs, as determined by the Total Resource Cost Test, as defined in section 1 of chapter 164. If a sector fails the cost-effectiveness test as part of the review process, its component programs shall either be modified so that the sector meets the test or shall be terminated.

(c) Each plan prepared under subsection (b) shall be submitted for approval and comment by the energy efficiency advisory council every 3 years on or before March 31. The electric and natural gas distribution companies and municipal aggregators shall provide any additional information requested by the council that is relevant to the consideration of the plan. The council shall review the plan and any additional information and shall submit its approval or comments to the electric and natural gas distribution companies and municipal aggregators not later than 3 months after submission of the plan. The electric and natural gas distribution companies and municipal aggregators may make any changes or revisions to reflect the input of the council.

(d)(1) The electric and natural gas distribution companies and municipal aggregators shall submit their respective plans, together with the council's approval or comments and a statement of any unresolved issues, to the department every 3 years on or before October 31. The department shall consider the plans and shall provide an opportunity for interested parties to be heard in a public hearing.

(2) Not later than 120 days after submission of a plan, the department shall issue a decision on the plan which ensures that the electric and natural gas distribution companies have identified and shall capture all energy efficiency and demand reduction resources that are cost effective or less expensive than supply of this section and considered equity benefits, and shall approve, modify and approve, or reject and require the resubmission of the plan accordingly. The department shall approve a fully reconciling funding mechanism for the approved plan and, in the case of municipal aggregators, a fully reconciling funding mechanism that requires coordination between the distribution company and municipal aggregator to ensure that program costs are collected, allocated and distributed in a cost effective, fair and equitable manner. The department shall determine the effectiveness of the plan on an annual basis.

(3) Each electric and natural gas plan shall be in effect for 3 years.

(4) The department shall not approve a plan if the plan's total costs are greater than the total costs incurred for the 2022 to 2024 plan approved pursuant to this section.

(5) Not later than 15 months after the conclusion of the final year of each plan, the department, drawing upon the most accurate and most complete data and measurements then available, shall issue a statement in writing to the clerks of the house of representatives and the senate, the house and senate committees on ways and means, the joint committee on telecommunications, utilities and energy and the joint committee on the environment, natural resources and agriculture, indicating the degree to which the activities undertaken pursuant to the performance of each plan contributed to the goal for the plan set by the secretary pursuant to section 3B of chapter 21N.

(e) If an electric or natural gas distribution company or municipal aggregator has not reasonably complied with the plan, the department may open an investigation. In any such investigation, the utility company or aggregator shall have the burden of proof to show whether it had good cause for failing to reasonably comply with the plan. If the utility company or aggregator does not meet its burden, the department may levy a fine of not more than the product of \$0.05 per kilowatt-hour or \$1 per therm times the shortfall of kilowatt-hours saved or therms saved, as applicable, depending upon the facts and circumstances and degree of fault, which shall be paid to the Massachusetts clean energy technology center within 60 days after the end of the year in which the department levies the fine. The fine shall not impact ratepayers. The department of energy resources shall oversee the use of the funds held by the Massachusetts clean energy technology center under this subsection so as to maximize the amount of energy efficiency achieved.

(f) The need for a program administrator to prepare for meetings with the council during the department's 120-day review period after submission of a plan shall not constitute good cause in a motion for an extension of time to respond to discovery or in a motion for an extension of time to respond to a record request.

SECTION 10. Section 22 of said chapter 25, as so appearing, is hereby amended by striking out subsection (b) and inserting in place thereof the following subsection:-

(b) The council shall, as part of the approval process by the department, seek to: (i) maximize net economic benefits through energy efficiency and load management resources and (ii) achieve energy, capacity, climate and environmental goals through a sustained and integrated statewide energy efficiency effort. The council: (i) shall review and approve demand resource

249 program plans and budgets; (ii) work with program administrators in preparing energy resource
250 assessments; (iii) determine the economic, system reliability, climate and air quality benefits of
251 energy efficiency and load management resources; (iv) conduct and recommend relevant
252 research; and (v) recommend long term energy efficiency, and load management goals to
253 maximize economic savings and achieve environmental goals. Approval of energy efficiency,
254 and demand resource plans and budgets shall require a 2/3 majority vote. The council shall, as
255 part of its review of plans, examine opportunities to offer joint programs; providing similar
256 efficiency measures that save more than 1 fuel resource or to coordinate programs targeted at
257 saving more than one fuel resource. Any costs for such joint programs shall be allocated
258 equitably among the efficiency programs.

259 SECTION 11. Said section 22 of said chapter 25 is hereby further amended by striking
260 out subsection (d) and inserting in place thereof the following subsection:-

261 (d) The electric and natural gas distribution companies and municipal aggregators shall
262 provide quarterly reports to the council on the implementation of their respective plans. The
263 reports shall include: (i) a description of the program administrator's progress in implementing
264 the plan; (ii) a summary of the savings secured to date; (iii) a quantification of the degree to
265 which the activities undertaken pursuant to each plan contribute to meeting all greenhouse gas
266 emission limits and sublimits imposed by law or regulation, provided, however, that this
267 provision shall not apply to the 2025 to 2027 plans and the 2028 to 2030 plans; and (iv) such
268 other information as the council shall determine. Annually, as part of a quarterly report, the
269 electric and natural gas distribution companies and municipal aggregators, in order to assess the
270 plan's services to low-income ratepayers, shall provide, consistent with the method approved by
271 the department: (i) the total number of ratepayers per municipality served; (ii) the total energy

efficiency surcharge dollars paid by ratepayers as part of their utility bills per municipality served; and (iii) the total incentives provided by the program administrators by municipality served, delineated by utility and sector, including residential, residential low-income, commercial and industrial. The council shall provide an annual report to the department and the joint committee on telecommunications, utilities and energy on the implementation of the plan. The annual report shall include descriptions of the programs, expenditures, cost-effectiveness and savings and other benefits during the previous year and a quantification of the degree to which the activities undertaken pursuant to each plan contribute to meeting all greenhouse gas emission limits and sublimits imposed by law or regulation, provided, however, that this provision shall not apply to the 2025 to 2027 plans and the 2028 to 2030 plans. The quarterly and annual reports shall be made available to the public.

SECTION 12. Section 2 of chapter 25A of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out the second paragraph and inserting in place thereof the following paragraph:-

There shall be within the department: (i) a division of energy efficiency, which shall work with the department of public utilities regarding energy efficiency programs; (ii) a division of renewable and alternative energy development, which shall oversee and coordinate activities that seek to maximize the installation of renewable and alternative energy generating sources that will provide benefits to ratepayers, advance the production and use of biofuels and other alternative fuels as the division may define by regulation and administer the renewable portfolio standard and the alternative portfolio standard; (iii) a division of green communities, which shall serve as the principal point of contact for local governments and other governmental bodies concerning all matters under the jurisdiction of the department of energy resources, with the

exception of matters involving the siting and permitting of small clean energy infrastructure facilities; (iv) a division of clean energy procurement, which shall develop resource solicitation plans, administer procurements for clean energy generation and energy services, and negotiate and manage contracts with clean energy generation and energy service facilities; and (v) a division of clean energy siting and permitting, which shall establish standard conditions, criteria, and requirements for the siting and permitting of small clean energy infrastructure facilities by local governments and provide technical support and assistance to local governments, small clean energy infrastructure facility project proponents and other stakeholders impacted by the siting and permitting of small clean energy infrastructure facilities at the local government level. Each division shall be headed by a director appointed by the commissioner and who shall be a person of skill and experience in the field of energy efficiency, renewable energy or alternative energy, energy regulation or policy, and land use and planning, respectively. The directors shall be the executive and administrative heads of their respective divisions and shall be responsible for administering and enforcing the law relative to their division and to each administrative unit thereof under the supervision, direction and control of the commissioner. The directors shall serve at the pleasure of the commissioner, shall receive such salary as may be determined by law and shall devote full time during regular business hours to the duties of the office. In the case of an absence or vacancy in the office of a director, or in the case of disability as determined by the commissioner, the commissioner may designate an acting director to serve as director until the vacancy is filled or the absence or disability ceases. The acting director shall have all the powers and duties of the director and shall have similar qualifications as the director.

SECTION 13. Section 3 of said chapter 25A, as so appearing, is hereby amended by striking out the definition of “Qualified RPS resource” and inserting in place thereof the following definition:-

“Qualified RPS resource”, a renewable energy generating source, as defined in subsection (c) or subsection (d) of section 11F, that has: (i) installed a qualified energy storage system at its facility; or (ii) commenced operation on or after January 1, 2019, provided, however, that a qualified RPS resource that commenced operation prior to January 1, 2019 shall be considered to have the commercial operation date of when the resource is co-located or contractually paired with a qualified energy storage system that commenced operation after January 1, 2019 and having a minimum nominal useful energy capacity of not less than 25 per cent of the nameplate power rating of the qualified RPS resource for 4 hours.

SECTION 14. Section 6 of said chapter 25A, as so appearing, is hereby amended by striking out clauses (14) and (15) and inserting in place thereof the following 3 clauses:-

(14) develop and promulgate, in consultation with the state board of building regulations and standards, a municipal opt-in specialized stretch energy code that includes, but is not limited to, net-zero building performance standards and a definition of net-zero building, designed to achieve compliance with the commonwealth's statewide greenhouse gas emission limits and sublimits established pursuant to chapter 21N;

(15) develop and promulgate, regulations, criteria, guidelines and standard conditions, criteria and requirements that establish parameters for the siting, zoning, review, and permitting of small clean energy infrastructure facilities by local government pursuant to section 21; and

(16) develop resource solicitation plans, conduct procurements pursuant to such plans as approved by the department of public utilities and negotiate and execute contracts with clean energy generation and energy services providers pursuant to section 23.

SECTION 15. Said Section 7 of said chapter 25A as so appearing is hereby amended by striking the third paragraph and inserting in place there of the following 2 paragraphs:-

All electric and gas companies, transmission companies, distribution companies, suppliers, and aggregators, as defined in section 1 of chapter 164, and suppliers of natural gas, including aggregators, marketers, brokers, and marketing affiliates of gas companies, excluding gas companies as defined in said section 1 of said chapter 164, engaged in distributing or selling electricity or natural gas in the commonwealth shall make accurate reports to the department in such form and at such times, which shall be at least quarterly, as the department shall require pursuant to this section. Each such company, supplier, and aggregator shall report semi-annually to the department the average of all rates charged for default, low-income, and standard offer service to each customer class and for each sub-class within the residential class, respectively; provided, however, that all such rate information so reported pursuant to this paragraph shall be deemed public information, and no such rate information shall be protected as a trade secret, confidential, competitively sensitive, or other proprietary information pursuant to section 5D of chapter 25. Each such company, supplier, and aggregator shall report to the department, in such form and at such times as the department shall require, detailed and accurate information including, but not limited to, the following: data regarding number of customers, load served, amounts billed to customers in dollars, renewable and clean energy attribute certificate purchases, and supply product offerings. The department may make such information, or aggregates of such information, available to the public on its website.

All resellers of petroleum products, including retail heating oil and propane suppliers, doing business in the commonwealth shall make accurate reports of price, inventory, and product delivery data to the department in such form and at such time as the department shall require. A retail heating oil or propane supplier who operates in the commonwealth shall make the daily delivery price of heating oil or propane for residential heating customers available in a clear and conspicuous manner. If the retail heating oil or propane supplier operates a website for commonwealth customers, the daily delivery price shall be clearly and conspicuously displayed on the dealer's website. Any information regarding competitive supply that the department makes available to the public shall be presented only in aggregated or anonymized form and shall not include supplier-specific pricing, offers, or terms. Supplier-submitted pricing and other commercially-sensitive information shall be treated as confidential and used solely for regulatory oversight and market monitoring. Notwithstanding any general or special law to the contrary, nothing in this Section shall be construed to apply to an entity organizing or administering a program pursuant to section 137 of chapter 164.

SECTION 16. Section 11F of said chapter 25A, as so appearing, is hereby amended by striking out, in lines 18 to 220, the words "(5) an additional 3 per cent of sales each year thereafter until December 31, 2029; and (6)" and inserting in place thereof the following words:-

(5) an additional 1 per cent of sales each year thereafter until December 31, 2032; (6) an additional 3 per cent of sales each year thereafter until December 31, 2037; and (7)

SECTION 17. Subsection (f) of said section 11F of said chapter 25A, as so appearing, is hereby amended by adding the following sentences:-

Not less than seventy per cent of alternative compliance payments made pursuant to this section shall be credited directly to electric ratepayers. The department of energy resources, in consultation with the department of public utilities, shall establish by regulation a mechanism to ensure that: (1) all such payments are returned to ratepayers in the service territory of the retail electricity supplier or municipal aggregator that submitted the payment, on a per kilowatt-hour basis or other equitable crediting method; and (2) the credits shall appear as bill reductions or refunds to ratepayers within 90 days of the close of the compliance year in which the payment was made. Any administrative costs associated with implementing this subsection shall be minimized and may be deducted from such payments prior to their return to ratepayers, provided that such deductions do not exceed reasonable expenses as approved by the department of public utilities.

SECTION 18. Section 11F½ of said chapter 25A, as so appearing, is hereby amended by adding the following 2 subsections:

(f) No alternative energy generating source shall be eligible for qualification under this section unless it has submitted a complete application for qualification to the department on or January 1, 2028. Any application submitted after such date shall be deemed ineligible for qualification. For the purposes of this subsection, “complete application” shall mean an application that includes all information and documentation required by the department’s regulations for qualification under this section, as in effect on the date the applicant is submitted.

(g) Notwithstanding subsection (f), any alternative energy generating source that, as of January 1, 2028, (i) has been qualified by the department under this section, or (ii) has submitted a complete application for qualification to the department, and that subsequently receives such

403 qualification, shall remain eligible to generate alternative energy credits and to participate in the
404 alternative portfolio standard, subject to the requirements and limitations in effect on the date of
405 its qualification.

406 SECTION 19. Section 21 of said chapter 25A, as so appearing, is hereby amended, in
407 line 84, by inserting after the word “include”, the following words:- , a demonstrated
408 consideration of the use of surplus interconnection service, as defined in section 69G of chapter
409 164, and.

410 SECTION 20. Said section 21 of said chapter 25A, as so appearing, is hereby further
411 amended by striking out subsections (k) through (o), inclusive.

412 SECTION 21. Said chapter 25A, as so appearing, is hereby amended by adding the
413 following 2 sections:-

414 Section 22. (a) As used in this section, the following words shall have the following
415 meanings unless the context clearly requires otherwise:

416 “Clean energy generation”, (i) electrical energy output, or that portion of the electrical
417 energy output, excluding any electrical energy utilized for parasitic load of a clean existing
418 generation unit, that qualifies under clean energy standard regulations pursuant to 310 CMR
419 7.75.

420 “Clean energy solicitation”, a competitive solicitation for environmental attributes of
421 clean energy generation or energy services completed by the department conducted pursuant to
422 this section.

423 “Distribution company”, a distribution company as defined in section 1 of chapter 164.

“Energy services”, operation of infrastructure that increases the deliverability or reliability of clean energy generation or reduces the cost of clean energy generation, including, but not limited to, transmission, energy storage and demand response technologies.

“Environmental attributes”, all present and future attributes under any and all international, federal, regional, state or other law or market, including, but not limited to, all credits or certificates that are associated, either now or by future action, with unit specific energy, including, but not limited to, those provided for in regulations promulgated pursuant to sections 11F and 17 of Chapter 25A or those provided for in regulations pursuant to 310 CMR 7.75.

“Long-term contract” a contract for a period of not more than 20 years.

(b) Notwithstanding any general or special law to the contrary, in order to maximize the commonwealth’s ability to contribute to the limits and sublimits established pursuant to sections 3 and 3A of chapter 21N in a manner that improves (i) the affordability of energy, utility, or related costs for residential ratepayers, including low-income and fixed-income households, and (ii) the operating costs or economic competitiveness of Massachusetts businesses, including commercial, industrial, and small business customers, the department shall investigate the necessity, benefits and risks of solicitations for environmental attributes or energy services, competitively solicit for environmental attributes or energy services, and may negotiate and enter into long-term contracts for such environmental attributes or energy services.

(c) The department shall publish a resource solicitation plan, which shall include, but not be limited to: (i) a description of the clean energy generation and energy services needs sufficient to contribute to the limits and sublimits established pursuant to sections 3 and 3A of chapter 21N

446 in a manner that improves (i) the affordability of energy, utility, or related costs for residential
447 ratepayers, including low-income and fixed-income households, and (ii) the operating costs or
448 economic competitiveness of Massachusetts businesses, including commercial, industrial, and
449 small business customers, including resource type, nameplate capacity amounts and commercial
450 operation dates for new resources; (ii) a schedule recommendation for clean energy solicitations
451 that the department will conduct within the subsequent 3 years following the department of
452 public utilities approval of the resource solicitation plan, provided, however, that the resource
453 solicitation plan shall include procurements for solar energy generation that in total will equal to
454 approximately ten gigawatts of aggregate nameplate capacity not later than December 31, 2040
455 and procurements for offshore wind energy generation that in total will equal to approximately
456 ten gigawatts of aggregate nameplate capacity not later than December 31, 2040; (iii) economic
457 development objectives and requirements for the clean energy solicitations; (iv) a mechanism for
458 the distribution companies to recover the costs associated with long-term contracts for
459 environmental attributes or energy services entered into by the department under this section,
460 including any administrative costs to support the department's requirements under this section,
461 provided that annual remuneration for said distribution companies shall equal 1.75 per cent of
462 the annual payments under the contract and such remuneration provision shall be acted upon by
463 the department of public utilities at the time of contract approval; and (v) a review of the
464 previous clean energy solicitations, if applicable. The department shall consult with the
465 department of public utilities and attorney general's office in the development of this resource
466 solicitation plan prior to filing at the department of public utilities. Any ex parte rules established
467 by the department of public utilities shall not apply to this consultation process. The department

may revise and resubmit the resource solicitation plan to the department of public utilities if the department seeks a revised schedule of procurements or seeks additional procurements.

(d) As part of the resource solicitation plan, the department shall review the impact of any contracted environmental attributes on portfolio standards and existing clean energy generation resources and shall provide any legislative recommendations as appropriate.

(e) The department shall file the resource solicitation plan and its recommendations with the department of public utilities. The department of public utilities shall review the resource solicitation plan and recommendations to determine whether the resource solicitation plan is a reasonable, appropriate, and cost-effective mechanism to achieve the goals of this section. The department of public utilities shall approve, approve with modifications, or reject the plan within 7 months of submission. Upon approval of the resource solicitation plan, the department of public utilities shall require the distribution companies to jointly propose tariffs consistent with the approved resource solicitation plan to recover costs associated with all contracts pursuant to this section not later than 3 months following the approval; provided, however, that the distribution companies shall not receive any remuneration, benefit or fee to compensate for costs associated with such contracts. The tariffs shall apportion costs associated with the contracts to be recovered from ratepayers among the distribution companies.

(f) The method for the clean energy solicitations shall be proposed by the department and shall utilize a competitive bidding process. The department shall consult with the attorney general and may consult with other state agencies as applicable regarding the choice of solicitation methods. The department may coordinate any solicitation under this section with other states, a municipality or group of municipalities with an approved municipal load

aggregation plan pursuant to section 134 of chapter 164 of the General Laws, or other governmental and non-governmental organizations; provided, however, that the department shall describe any impacts coordination may have on the solicitation, including any impacts to nameplate capacity amounts or quantities of clean energy generation attributes sought in its solicitation. After notice and the opportunity for public comment, the department shall proceed with the clean energy solicitation. The department may competitively solicit proposals for long-term contracts for environmental attributes or energy services. The department may consult with other states, federal agencies and regional organizations, including, but not limited to, ISO New England Inc. or its successor; provided, however, that reasonable proposals have been received, the department shall make or cause to be made filings as necessary through the appropriate jurisdictional mechanism and enter into long-term contracts that are consistent with the roadmap plans published pursuant to chapter 21N in a manner that improves (i) the affordability of energy, utility, or related costs for residential ratepayers, including low-income and fixed-income households, and (ii) the operating costs or economic competitiveness of Massachusetts businesses, including commercial, industrial, and small business customers.

(g) Each solicitation shall require that bidders provide: (i) documentation reflecting the bidder's demonstrated commitment to workforce or economic development within the commonwealth; (ii) a statement of intent concerning efforts that the bidder and its contractors and subcontractors will make to promote workforce or economic development through the project; (iii) documentation reflecting the bidder's demonstrated commitment to expand workforce and supplier diversity, equity and inclusion in its past projects within the commonwealth; (iv) documentation as to whether the bidder and its contractors and subcontractors participate in a state or federally certified apprenticeship program and the number

of apprentices the apprenticeship program has trained to completion for each of the last 5 years;

(v) a statement of intent concerning how or if the bidder and its contractors and subcontractors intend to utilize apprentices on the project; (vi) documentation relative to the bidder and its contractors and subcontractors regarding their history of compliance with chapters 149, 151, 151A, 151B and 152, 29 U.S.C. § 201, et seq. and applicable federal antidiscrimination laws;

(vii) documentation that the bidder and its contractors and subcontractors are currently, and will remain, in compliance with chapters 149, 151, 151A, 151B, and 152, 29 U.S.C. § 201, et seq. and applicable federal anti-discrimination laws for the duration of the project; (viii) documentation of the bidder's history with picketing, work stoppages, boycotts or other economic actions against the bidder and a description or plan on how the bidder intends to prevent or address such actions; (ix) a description or plan on how the bidder intends to prevent or address such actions during all phases of the construction, reconstruction, renovation, development, and operation of the project, including, but not limited to, the bidder's intended use of a project labor agreement; (x) documentation relative to whether the bidder and its contractors have been found in violation of state or federal safety regulations in the previous 10 years; (xi) documentation relative to the bidder's past use of project labor agreements and the bidder's compliance with sections 26 to 27F, inclusive, of chapter 149; (xii) plans for mitigation, minimization and avoidance of detrimental environmental and socioeconomic impacts, including through meaningful consultation with impacted environmental and socioeconomic stakeholders, including federally recognized and state acknowledged tribes and, in the case of offshore wind, commercial and recreational fishing; and (xiii) a plan for benefits from the project for low-income ratepayers and environmental justice populations in the commonwealth. The department may require a wage bond or other comparable form of insurance in an amount to be set by the

department to ensure compliance with law, certifications or department obligations. The department shall give preference for proposals that demonstrate that their plans provide benefits to the Commonwealth in a manner that improves (i) the affordability of energy, utility, or related costs for residential ratepayers, including low-income and fixed-income households, and (ii) the operating costs or economic competitiveness of Massachusetts businesses, including commercial, industrial, and small business customers. The department shall give preference for proposals that demonstrate commitment to secure those benefits through firm and binding agreements or contracts. The department may require a wage bond or other comparable form of insurance in an amount to be set by the department to ensure compliance with law, certifications or department obligations. The electric distribution companies may provide the department technical advice on proposals' costs and benefits.

(h) Each solicitation shall notify bidders that bidders shall be disqualified from the solicitation if the bidder has been debarred by the federal government or commonwealth for the entire term of the debarment.

(i) Bidders shall, in a timely manner, provide documentation and certifications as required by law or otherwise directed by the department. Incomplete or inaccurate information may be grounds for disqualification, dismissal or other action deemed appropriate by the department. Proposals received pursuant to a solicitation under this section shall be subject to review by the department, in consultation with the executive office of economic development, the executive office of energy and environmental affairs, the supplier diversity office, and other state agencies as applicable. The department may request that other state agencies consulted pursuant to this subsection review and score proposals on specific criteria as established in the clean energy solicitation. Proposals received pursuant to a solicitation under this section may be

subject to review by the electric distribution companies in order to develop and provide technical advice. Bidders that demonstrate compliance with sections 26 to 27F, inclusive, of chapter 149 and the use of state or federally certified apprenticeship programs, shall receive added weight in clean energy solicitations under subsection (e).

(j) The department shall issue a final, binding determination of the selected bid or bids, provided, however, that the final contract or contracts executed shall be subject to review by the department of public utilities. The department shall propose draft contracts and take all reasonable actions to structure the contracts, pricing or administration of the products purchased under this section to contribute towards the limits and sublimits established pursuant to sections 3 and 3A of chapter 21N in a manner that improves (i) the affordability of energy, utility, or related costs for residential ratepayers, including low-income and fixed-income households, and (ii) the operating costs or economic competitiveness of Massachusetts businesses, including commercial, industrial, and small business customers. The department shall consider the use of pricing mechanisms or pricing structures, including but not limited to, indexed pricing.

(k) Long-term contracts executed pursuant to this section shall be subject to the approval of the department of public utilities. The department of public utilities shall consider the potential costs and benefits of the proposed long-term contract and shall approve a long-term contract if the department finds that the contract is cost-effective and consistent with the roadmap plans published pursuant to chapter 21N in a manner that improves (i) the affordability of energy, utility, or related costs for residential ratepayers, including low-income and fixed-income households, and (ii) the operating costs or economic competitiveness of Massachusetts businesses, including commercial, industrial, and small business customers, taking into account the factors outlined in this section, consistency with the approved resource solicitation plan and

the department's recommendations. The department of public utilities shall complete its review of long-term contracts submitted for its approval not later than 90 days after the contracts are filed by the department of energy resources.

(l) The department may retire any environmental attributes purchased pursuant to approved long-term contracts under this section on behalf of the commonwealth to be used toward satisfying compliance with the limits and sublimits established pursuant to sections 3 and 3A of chapter 21N and any regulations or programs established pursuant to sections 11F and 17 of Chapter 25A and the clean energy portfolio standard program established pursuant to 310 CMR 7.75. If any retired environmental attributes are eligible under a renewable, clean peak or other energy portfolio standard established by the department or a clean energy portfolio standard established by the department of environmental protection, the portfolio standard minimum obligations of suppliers subject to such standards may be reduced in proportion to any eligible environmental attributes retired pursuant to this section, subject to the discretion of the department and the department of environmental protection.

(m) There shall be a separate, non-budgeted special revenue fund known as the central procurement fund, which shall be administered by the department, without further appropriation, for funding long-term contracts consistent with this section. The fund shall be credited with: (i) funds or revenue collected by distribution companies pursuant to a tariff approved by the department of public utilities in furtherance of the objectives and requirements of this section, provided that said tariff shall improve (i) the affordability of energy, utility, or related costs for residential ratepayers, including low-income and fixed-income households, and (ii) the operating costs or economic competitiveness of Massachusetts businesses, including commercial, industrial, and small business customers; (ii) revenue from appropriations or other money

authorized by the general court and specifically designated to be credited to the fund; (iii) interest earned on such funds or revenues; (iv) bid fees collected by the department from participants in clean energy solicitations conducted pursuant to this section; (v) other revenue from public and private sources, including gifts, grants and donations; and (vi) any funds provided from other sources. All amounts credited to the fund shall be used solely for activities and expenditures consistent with the public purposes of this section, including the ordinary and necessary administrative and personnel expenses of the department related to the administration and operation of the fund and performance of the duties established by this section. Revenues deposited in the fund that are unexpended at the end of a fiscal year shall not revert to the General Fund and shall be available for expenditure in the following fiscal year. No expenditure made from the fund shall cause the fund to be in deficit at any point.

(n) A proposal or solicitation issued by the department shall notify bidders that bidders shall be disqualified from the project if the bidder has been debarred by the federal government or commonwealth for the entire term of the debarment.

(o) A bidder shall, in a timely manner, provide documentation and certifications as required by law or otherwise directed by the department. Incomplete or inaccurate information may be grounds for disqualification, dismissal or other action deemed appropriate by the department.

Section 23. (a) For the purposes of this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Permit granting authority”, the board of appeals or zoning administrator of a city or town.

“State smart solar permitting platform”, an Internet-based platform that automates plan review, produces a code-compliant approval, and instantly issues a permit or permit revision in response to the receipt of an acceptable application to construct a residential solar energy system and associated equipment.

(b) (1) The department shall establish, develop, implement, and administer the state smart solar permitting platform for the purpose of automatically performing plan review of applications to construct a residential solar energy system and associated equipment, and to instantly issue a permit or permit revision to construct a code-compliant residential solar energy system.

(2) The state smart solar permitting platform shall have the following minimum capabilities:

(i) perform robust code compliance checks using algorithms to evaluate characteristics of the proposed residential solar energy system to determine whether the proposed system aligns with the requirements of the Massachusetts Electrical Code and Massachusetts State Building Code;

(ii) produce construction documents to be used for the inspection of a residential solar energy system and for recordkeeping purposes;

(iii) instantly release permits and permit revisions to construct a residential solar energy system;

(iv) provide users with the ability to submit an application to construct a residential solar energy system 24 hours a day, except when the platform is down for an upgrade or maintenance;

(v) allow the use of electronic signatures, stamps, seals and other certifications and documents on all applications and submitted materials necessary for issuance of a permit; and

(vi) be able to process permit applications for residential solar energy systems and associated equipment including, but not limited to, photovoltaic panels, energy storage systems, main electrical panel upgrades, and main breaker derates, that provide electrical power to detached one- and two-family dwellings.

(c) (1) A permit granting authority shall either allow for the submission of applications to construct a residential solar energy system and associated equipment through the state smart solar permitting platform or through an alternative automated solar permitting platform that satisfies the requirements set forth in subsection (b) in an equivalent manner as the state smart solar permitting platform implemented by the department. A permit granting authority that implements an alternative automated solar permitting platform shall not require an applicant to submit documentation to receive a permit to construct a residential solar energy system and associated equipment that is not required by the state smart solar permitting platform.

(d) (1) A permit granting authority that does not allow for the submission of applications to construct a residential solar energy system through the state smart solar permitting platform shall submit an annual compliance report to the department with sufficient information for the department to determine whether their alternative automated solar permitting platform implemented by the permit granting authority satisfies all the requirements set forth in subsection (b). The department may establish guidelines for submission of a local compliance report, assess whether the alternative automated solar permitting platform implemented by the permit granting

authority satisfies all the requirements set forth in this section, and shall provide public access to the compliance reports and any assessments of compliance on the department's website.

(e) If the department determines that a permit granting authority has elected to utilize an alternative automated solar permitting platform and is out of compliance with this section, contractors may utilize the state smart solar permitting platform for residential solar energy systems in that permit granting authority's jurisdiction.

(f) To defray the cost of developing and administering the state smart solar permitting platform, the department may adopt, amend, and repeal rules and regulations providing for the charging of, and setting the amount of, solar permit surcharge fees to be collected by the department, a permit granting authority or private agency. A permit granting authority shall remit to the department all monies collected by the authority through solar permit surcharge fees.

SECTION 22. Section 1 of chapter 142A of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after the definition of "Claimant" the following 2 definitions:- "Comparable equipment", similar equipment to the proposed system design that maintains at least the same kilowatt-AC and kilowatt DC system size. "Consumer", a natural person who seeks or acquires goods or services for personal, family or household use.

SECTION 23. Said section 1 of said chapter 142A, as so appearing, is hereby further amended by inserting after the definition of "Fund" the following 2 definitions:-

"Lease", a contract, as understood under 12 CFR 1013.2, in the form of a bailment or lease for the use of personal property by a natural person primarily for personal, family, or household purposes, for a period exceeding 4 months and for a total contractual obligation not

689 exceeding the applicable threshold amount, whether or not the lessee has the option to purchase
690 or otherwise become the owner of the property at the expiration of the lease.

691 “Loan”, a credit offered or extended to a consumer primarily for personal, family, or
692 household purposes.

693 SECTION 24. Said section 1 of said chapter 142A, as so appearing, is hereby further
694 amended by striking out the definitions of “Residential contracting” and “Salesperson” and
695 inserting in place thereof the following 7 definitions:-

696 “Residential contracting, the reconstruction, alteration, renovation, repair, modernization,
697 including, but not limited to a residential solar electric system, conversion, improvement,
698 removal, or demolition, or the construction of an addition to any pre-existing owner occupied
699 building containing at least one but not more than four dwelling units, which building or portion
700 thereof is used or designed to be used as a residence or dwelling unit, or to structures which are
701 adjacent to such residence or building.

702 “Residential solar electric system”, a system or facility for the generation of electricity
703 that uses solar energy to generate electricity located on the property of a customer of an electric
704 utility that is connected on the owner’s side of the electricity meter to provide electricity
705 primarily to offset load on that property primarily for personal, family, or household purposes.

706 “Salesperson”, any person, other than a supplier of material or a laborer, who solicits, offers,
707 negotiates, executes, or otherwise endeavors, to procure by any means whatsoever, directly or
708 indirectly, a contract for residential contracting services from an owner on behalf of a contractor
709 or subcontractor. “Solar agreement”, a contract for the purchase of a residential solar electric

system; a lease for a third-party owned residential solar electric system; or a residential power purchase agreement. An agreement under this Act is between a solar company and a consumer.

“Solar company” or “solar installation company”, any form of business organization or any other nongovernmental legal entity, including, without limitation, a corporation, partnership, association, trust or unincorporated organization that engages in transactions directly with residential consumers to sell and install residential solar electric systems, or to install Residential solar electric systems owned by third parties from whom consumers will lease Residential solar electric systems or purchase electricity generated by such systems. “Solar company” or “solar installation company” shall not include an entity that is a third-party owner of systems or a financier of such systems who does not sell or install residential solar electric systems or individuals who self-install a system.

“Solar power purchasing agreement”, a financial agreement where a solar company arranges for the design, permitting, financing, installation, maintenance, repairs or replacement of a residential solar electric system and sells the power generated to the consumer.

“Solar salesperson”, a salesperson means an employee or independent contractor hired by a licensed Solar Company and who solicits, sells, negotiates or executes agreements for Solar Electric Systems. Solar Salesperson does not include 1) An officer of record of a corporation licensed pursuant to this chapter, or a manager, member, or officer of record of a limited liability company; 2) A general partner listed on the license record of a partnership; 3) A person who contacts the prospective buyer for the exclusive purpose of scheduling appointments for a Salesperson; 4) Every person listed in the records of the Office of Consumer Affairs and Business Regulation as then associated with a licensee; and 5) Persons or businesses who solely

provide referrals to a licensed Solar Company or contact information for licensed Solar Companies.

SECTION 25. Subsection (a) of section 2 of said chapter 142A s, as so appearing, is hereby amended by striking out paragraphs (8) to (10), inclusive, and inserting in place thereof the following paragraphs:- (8) there shall be a clear and conspicuous notice appearing in the contract:

(i) that all contractors and subcontractors must be registered by the director and that any inquiries about a contractor or subcontractor relating to a registration should be directed to the director;

(ii) of the registration number of the contractor or subcontractor;

(iii) of an owner's three-day cancellation rights under section forty-eight of chapter ninety-three, section fourteen of chapter two hundred and fifty-five D, or section ten of chapter one hundred and forty D as may be applicable; provided, however, in connection with any sale of a residential solar electric system, the consumer shall have at least five business days after the date of the transaction and receipt of the signed agreement to cancel the agreement without any financial penalty;

(iv) of all warranties, guarantees, transferability of any obligations, and the owner's rights under the provisions of this act;

(v) in ten point bold type or larger, directly above the space provided for the signature, "Do not sign this contract if there are any blank spaces";

(vi) of any lien on or security interest on the residence as a consequence of the contract.

(9) if an agreement for the purchase of a residential solar electric system, it shall also include the following terms: (i) The name, license or registration number, address, telephone number, and email address of the solar company and the installer, if different; (ii) If applicable, the name, license or registration number, telephone number, and email address of the salesperson who solicited or negotiated the agreement; (iii) The purchase price for the system; (iv) The payment schedule for the system, if any; (v) A description of the project system size expressed in kilowatts-DC and kilowatts-AC, the solar modules to be installed, the inverters to be installed, the monitoring to be installed, and, if applicable, the energy storage system to be installed; (vi) If applicable, a statement in close proximity to the description of the project that must be separately acknowledged by the customer and reads: "I understand comparable equipment may be installed but the proposed kilowatts-AC system size and kilowatts-DC system size will not decrease; and (vii) An explanation of which parties are responsible for filing the interconnection application and permits. This section does not apply to the following: (A) The transfer of title or rental of real property on which a residential Solar Electric System is or is expected to be located; (2) A lender, governmental entity, or other third party that enters into an agreement with a customer to finance a residential Solar Electric System but is not a party to a system purchase agreement, Power Purchase Agreement, or lease agreement; (3) An Agreement for a Solar Electric Systems that is not for residential use; or (4) An Agreement for a Solar Electric System that is installed as a feature on new construction.

(10) if an agreement for the lease of a residential solar electric system, it shall also include the following terms: (i) The name, license or registration number, address, telephone number, and email address of the lessor and the installer, if different; (ii) If applicable, the name, telephone number, license or registration number, and email address of the salesperson who

solicited or negotiated the agreement; (iii) The total number of payments under the lease and the payment schedule for the leased system, including the number, amount, and due dates or periods of payments; (iv) A description of the project, including the system size expressed in kilowatts-DC, the solar modules to be installed, the inverters to be installed, and, if applicable, the energy storage system to be installed; (v) A description of any maintenance and repair responsibilities for each party; (vi) A description of whether the consumer has the right to purchase the leased system either during the lease term or at the term of the lease and the purchase price; (vii) A description of the options to transfer the lease to third-parties and the conditions for the transfer; (viii) Which parties are responsible for filing interconnection application and permits; (ix) The right to withhold payment for noncompliance of the lease; and (x) A description of any security interest filed against the system;

This section does not apply to the following: (1) The transfer of title or rental of real property on which a residential Solar Electric System is or is expected to be located; (2) A lender, governmental entity, or other third party that enters into an agreement with a customer to finance a residential Solar Electric System but is not a party to a system purchase agreement, Power Purchase Agreement, or lease agreement; (3) An Agreement for a Solar Electric Systems that is not for residential use; or (4) An Agreement for a Solar Electric System that is installed as a feature on new construction.

(11) if a solar power purchase agreement, it shall also include the following terms: (i) The name, license or registration number, address, telephone number, and email address of the solar company and the solar installation company, if different from the company who sells a solar power purchase agreement; (ii) If applicable, the name, telephone number, license or registration number, and email address of the salesperson who solicited or negotiated the agreement; (iii) The

799 payment schedule for the sale of output of the residential solar electric system, including the
800 number, amount, and due dates or periods of payments; (iv) A description of the project,
801 including the system size expressed in kilowatts-DC and kilowatts-AC, the solar modules to be
802 installed, the inverters to be installed, the monitoring to be installed and, if applicable, the energy
803 storage system to be installed; (v) A description of any maintenance and repair responsibilities
804 for each party; (vi) A description of whether the owner has the right to purchase the system
805 either during the term of the solar power purchase agreement or at term of the solar power
806 purchase agreement and the purchase price; (vii) A description of the options for the owner to
807 transfer the contract to third parties and the conditions for the transfer; (viii) Which parties are
808 responsible for filing interconnection application and permits; and (ix) A description of any
809 security interest filed against the system;

810 This section does not apply to the following: (1) The transfer of title or rental of real
811 property on which a residential Solar Electric System is or is expected to be located; (2) A
812 lender, governmental entity, or other third party that enters into an agreement with a customer to
813 finance a residential Solar Electric System but is not a party to a system purchase agreement,
814 Power Purchase Agreement, or lease agreement; (3) An Agreement for a Solar Electric Systems
815 that is not for residential use; or (4) An Agreement for a Solar Electric System that is installed as
816 a feature on new construction.

817 (12) an enumeration of such other matters upon which the owner and the contractor may
818 lawfully agree; provided, however, that no such agreement may waive any rights conveyed to the
819 owner under the provisions of this chapter; and

820 (13) any other provision otherwise required by the applicable laws of the commonwealth.

821 No contract shall contain an acceleration clause under which any part or all of the balance
822 not yet due may be declared due and payable because the holder deems himself to be insecure.
823 However, where the contractor deems himself to be insecure he may require as a prerequisite to
824 continuing said work that the balance of funds due under the contract, which are in the
825 possession of the owner, shall be placed in a joint escrow account requiring the signature of the
826 contractor and owner for withdrawal.

827 At the time of signing, the owner shall be furnished with a copy of the contract signed by
828 both the contractor and the owner. No work shall begin prior to the signing of the contract and
829 transmittal to the owner of a copy of such contract.

830 The contractor or salesperson shall verbally explain to the owner their right to rescind the
831 agreement without penalty upon the owner signing the agreement.

832 Any contract entered into between a contractor and homeowner shall require the
833 contractor to inform the homeowner of the following: (i) any and all necessary permits, (ii) that it
834 shall be the obligation of the contractor to obtain said permits, and (iii) that homeowners who
835 secure their own permits will be excluded from the guaranty fund provisions of this chapter.

836 Any contract entered into between a contractor and homeowner may provide that the
837 contractor may initiate alternative dispute resolution through any private arbitration services
838 approved by the director, under paragraphs (a) to (e), inclusive, of section four; provided, that
839 said alternative dispute resolution provision is clearly and conspicuously disclosed in the
840 contract, in language designated by the director, and that each party separately signs and dates
841 the provision, thereby assenting to the procedure.

A solar company shall retain a copy of all signed agreements for the duration of the agreement but not less than four years after the date of consummation.

Contracts which fail to comply with the requirements of this section shall not be invalid solely because of noncompliance.

SECTION 26. Said chapter 142A, as so appearing, is hereby further amended by inserting after section 2 the following 2 sections :-

Section 2A. (a) Prior to entering into an agreement for a residential solar electric system with any owner, a solar company shall provide the owner with a separate written disclosure form in no smaller than ten point font and no more than four pages in length.

The disclosure form shall contain: (1) The name, address, telephone number, email address, and license or registration number of the solar company; (2) The name, address, telephone number, email address, and license or registration number of the installer if different from the solar company; (3) The name, address, telephone number, email address, and license or registration number of the system maintenance provider if different from the solar company; (4) The payment schedule for upfront costs, including any payments due at signing, commencement of installation, and completion of installation, if applicable; (5) System design assumptions, including system size, estimated first year production, estimated annual system production degradation, presence of energy storage, energy storage capacity, and a description of the equipment needed to provide backup power. (6) A disclosure notifying the owner whether and to what extent system maintenance and repairs are included in the agreement, and any system maintenance costs for which the owner will be responsible; (7) If applicable, a statement in close proximity to the description of the project that must be separately acknowledged by the owner

864 and reads: “I understand comparable equipment may be installed but the proposed kilowatts-AC
865 system size and kilowatts-DC system size will not decrease”; (8) A disclosure describing
866 warranties for the repair of any damage to the owner’s residence in connection with the system
867 installation or removal; (9) A description or location in the agreement of any performance or
868 production guarantees, if applicable; (10) An estimated start and completion date for installation
869 and a statement in close proximity which reads; “The actual start and completion date depends
870 on many factors such as delays related to permitting and interconnection approvals which are
871 controlled by your local jurisdiction and local utility respectively.”; (11) A brief description of
872 the basis for any savings estimates that were provided to the owner, if applicable. The
873 description shall include, at a minimum, the applicable utility rates, assumptions for increases to
874 future electricity rates, and estimated system production and status of utility compensation for
875 excess energy generated by system at the time of contract signing; (12) A disclosure concerning
876 the retention of any renewable energy credits; and (13) A statement that “The assumptions used
877 to estimate savings such as utility rates may change. There may be fees that cannot be offset with
878 solar. Excess electricity sent back to the grid may be credited at rates below what you pay for
879 electricity. For further information regarding rates, you may contact your local utility or the
880 Massachusetts Department of Public Utilities. Tax and other state and federal incentives are
881 subject to change or termination by executive, legislative or regulatory action, which may impact
882 savings estimates. Please read your Contract carefully for more details.”.

883 In the case of a purchase of a residential solar electric system, the disclosure form
884 required shall also include: (1) Purchase price for the system; (2) Estimated start and completion
885 dates for installation; and (3) A disclosure notifying the owner of the responsible party or parties
886 for obtaining interconnection approval.

887 In the case of a lease for a residential solar electric system, the disclosure form required
888 shall also include: (1) The length of the lease; (2) Monthly payments for the first year of the
889 lease; (3) Total estimated lease payments over the term of the lease; (4) Any payment increases
890 and the timing of any such increase, if applicable; (5) The total number of lease payments; (6)
891 Payment due dates and the manner in which the owner will receive invoices; (7) Any one-time or
892 recurring fees, including but not limited to the circumstances triggering any fees, if applicable;
893 (8) A disclosure notifying the owner whether the lessor will be filing a fixture filing on the
894 system; and (9) A disclosure describing the transferability of the lease, and any conditions for
895 lease transfers in connection with an owner selling their home.

896 In the case of a solar power purchase agreement, the disclosure form required shall also
897 include: (1) The length of the solar power purchase agreement; (2) Rates for the first year of the
898 solar power purchase agreement; (3) Any rate or payment increases and the timing of any such
899 increase, if applicable; (4) the total number of solar power purchase agreement payments; (5)
900 Payment due dates and the manner in which the owner will receive invoices; (6) Any one-time or
901 recurring fees, including but not limited to the circumstances triggering any fees, if applicable;
902 (7) A disclosure notifying the owner if a fixture filing will be filed on the system; and (8) A
903 disclosure describing the transferability of the system in connection with the owner selling their
904 home;

905 (b) The department of energy resources, in consultation with the director, shall develop a
906 consumer educational brochure that must be provided no later than when the disclosure form
907 required by this section is provided to the consumer. The brochure may include, but is not
908 limited to, information regarding solar photovoltaic technology, solar compensation policies such

as net metering, federal tax credits, questions to ask solar companies, consumer rights, and sources of additional information that are available to assist owners.

This section does not apply to the following: (1) The transfer of title or rental of real property on which a residential Solar Electric System is or is expected to be located; (2) A lender, governmental entity, or other third party that enters into an agreement with a customer to finance a residential Solar Electric System but is not a party to a system purchase agreement, Power Purchase Agreement, or lease agreement; (3) An Agreement for a Solar Electric Systems that is not for residential use; or (4) An Agreement for a Solar Electric System that is installed as a feature on new construction.

Section 2B. Any solar company or solar installation company that sells itself to another company, whether through stock sale, asset sale or bankruptcy, shall notify all owners of the transaction, and provide owners with the contact address, telephone number, electronic mail, and website of the new company within 90 days upon the transaction completion.

A consumer may seek recovery under chapter 93A against a solar company or solar installation company for failure to comply with this section.

SECTION 27. Section 9 of said chapter 142A, as so appearing, is hereby amended by striking out subsection (a) and inserting in place thereof the following subsection:-

(a) No contractor or subcontractor shall undertake, offer to undertake, or agree to perform residential contracting services unless registered therefore with the approval of the office of consumer affairs and business regulation. No solar salesperson of a residential solar electric system shall seek to contract with a consumer unless registered therefore with the approval of the office of consumer affairs and business regulation.

SECTION 28. Section 10 of said chapter 142A, as so appearing, is hereby amended in by striking out subsection (c) and inserting in place thereof the following subsection:-

(c) whether the applicant has ever been previously registered in the commonwealth as a salesperson, contractor or subcontractor pursuant to this chapter, under what other names he was previously registered, whether there have been previous judgments or arbitration awards against him, whether there is money owing to the fund on account of such judgments or awards against him, and whether his registration has ever been suspended or revoked.

SECTION 29. Said chapter 142A, as so appearing, is hereby further amended by inserting after section 10 the following section:-

Section 10A. All solar salespersons of residential solar electric systems shall be annually registered therefore with the approval of the office of consumer affairs and business regulation. An independent contractor may be retained as a solar salesperson by one, or more, licensed solar company. A solar salesperson may be employed by one, or more than one, licensed solar company.

Prior to engaging in any sales or marketing of a solar electric system, a solar salesperson shall state the name of the solar company that they are selling on behalf of and the purpose of the engagement. Solar salespersons must wear an identification badge with their name, photo, company name, company license number, and salesperson registration number.

In the absence of a state or local ordinance to the contrary, solar salespersons of residential solar electric systems shall not visit any residence to conduct sales except between the hours of 9:00 a.m. and 8:00 p.m; provided, however, an owner may schedule an in-person meeting time with a solar salesperson between the hours of 8:00 p.m. and 9:00 a.m.

Solar salespersons of residential solar electric systems are prohibited from wearing apparel, carrying equipment, or distributing materials that include the logo or emblem of an electric distribution company or retail energy supply company, or using any language suggesting a relationship with an electric distribution company, retail energy supply company, or government agency where no actual relationship exists.

The Office of Consumer Affairs and Business Regulation shall evaluate solar salesperson training and certification programs, including the American National Standards for “Solar Salesperson Training,” ANSI SEIA 401, beginning January 1, 2027, and determine if such training and certification will be a requirement for solar salesperson registration effective January 1, 2028.

SECTION 30. Section 11 of said chapter 142A, as so appearing, is hereby amended by striking out the first paragraph of subsection (a) and inserting in place thereof the following paragraph:-

(a) Every contractor or subcontractor shall pay a registration fee in an amount equal to the sum of: (i) the fee paid by construction supervisors pursuant to section 94 of chapter 143; and (ii) an amount necessary to recover the aggregate cost to the commonwealth associated with the use of credit cards to pay fees charged pursuant to this chapter. Every solar salesperson of a residential solar electric system shall pay a registration fee in an amount as approved by the director necessary to administer such salespersons registration and renewal system. The registration fee required by this paragraph shall be payable upon application for registration and renewal.

974 SECTION 31. Section 13 of said chapter 142A, as so appearing, is hereby amended by
975 adding, after the word “all”, in line 3, the following words:- solar salespersons,.

976 SECTION 32. Section 19 of said chapter 142A, as so appearing, is hereby amended by
977 inserting after the first paragraph the following paragraph:-

978 Any solar salesperson selling residential solar electric systems without obtaining a
979 certificate of registration as required by this chapter or without completing any future required
980 training, as applicable, shall be punished with a fine not exceeding five thousand dollars.

981 SECTION 33. Said chapter 142A, as so appearing, is hereby amended by inserting after
982 section 21 the following section:-

983 Section 22. The department of energy resources and the office of consumer affairs and
984 business regulation shall develop the consumer disclosure form as required by section 2A of
985 chapter 142A through a process with input from solar companies, other stakeholders and the
986 public. The department of energy resources and the office of consumer affairs and business
987 regulation may consider use of any existing disclosure forms for solar transactions published by
988 the state and any national standards regarding solar disclosure forms in their development of the
989 disclosure form required by said section.

990 The disclosure form shall be required for use with all new agreements that are entered
991 into 180 days after the final disclosure form is published by the department of energy resources
992 and the office of consumer affairs and business regulation.

993 SECTION 34. Chapter 149 of the General Laws, as appearing in the 2024 Official
994 Edition, is hereby amended by inserting after section 27H the following section:-

Section 27I. All construction, as defined in section 27D, on a thermal energy network, and on any utility infrastructure impacted by the construction or installation of a thermal energy network requiring the excavation, construction, reconstruction of public lands, rights of way, public works, or buildings that is not performed by workers directly employed by a gas company or electric company, as defined in section 1 of chapter 164, shall be performed and procured under this section.

No public authority, including, but not limited to, the commonwealth, its subdivisions, a county, district, or a municipality, shall permit or agree to construction, as defined in section 27D, by a gas or electric distribution company requiring the excavation, alternation, reconstruction, or repair of public lands, works, or buildings unless said agreement contains a stipulation requiring prescribed rates of wages, as determined by the commissioner, to be paid to individuals performing thermal energy network or heat loop construction and associated pipeline work who are not gas company or electric company employees. Any such approval which does not contain said stipulation shall be invalid, and no construction may commence thereunder. Said rates of wages shall be requested of said commissioner by said public commissioner or public body together with the gas company or electric company on whose service territory the public infrastructure lies, and shall be furnished by the commissioner in a schedule containing the classifications of jobs, and the rate of wages to be paid for each job. Said rates of wages shall include payments to health and welfare plans, pension plans, and supplementary unemployment plans, or, if no such plan is in effect between employers and employees, the amount of such payments shall be paid directly to employees. Such requests for rates shall be made every six months.

1017 Any entity paying less than said rates of wages, including payments to health and welfare
1018 funds, pension plans, and supplementary unemployment plans, or the equivalent in wages, on
1019 said works, and any entity accepting for his own use, or for the use of any other person, as a
1020 rebate, gratuity or in any other guise, any part or portion of said wages or health and welfare
1021 funds, pension plans, and supplementary unemployment plans shall have violated this section
1022 and shall be punished or shall be subject to a civil citation or order as provided in section 27C.

1023 An employee claiming to be aggrieved by a violation of this section may, 90 days after
1024 the filing of a complaint with the attorney general, or sooner if the attorney general assents in
1025 writing, and within 3 years after the violation, institute and prosecute in his own name and on his
1026 own behalf, or for himself and for others similarly situated, a civil action for injunctive relief, for
1027 any damages incurred, and for any lost wages and other benefits pursuant to section 150. An
1028 employee so aggrieved who prevails in such an action shall be awarded treble damages, as
1029 liquidated damages, for any lost wages and other benefits and shall also be awarded the costs of
1030 the litigation and reasonable attorneys' fees.

1031 SECTION 35. Section 1 of chapter 164 of the General Laws, as appearing in the 2024
1032 Official Edition, is hereby amended by inserting after the definition of "Energy management
1033 services" the following definition:-

1034 "Energy marketer", any entity, firm, partnership, association, private corporation, or other
1035 third-party who contracts with or is otherwise directly engaged and compensated by a supplier to
1036 sell electric generation services, or contracts with and is directly compensated by a third-party
1037 marketer of the supplier to sell electric generation services on behalf of a supplier, that markets,
1038 advertises, or otherwise offers to sell generation service to retail customers that is acting as an

1039 agent for a supplier, including, but not limited to, entities engaged in door-to-door,
1040 telemarketing, or tabletop interactions with retail customers. “Energy marketer” shall not include
1041 contractors, agents, or employees engaged in incidental activities where compensation is not tied
1042 to customer enrollment.

1043 SECTION 36. Said section 1 of said chapter 164, as so appearing, is hereby further
1044 amended by striking out the definition of “Gas company” and inserting in place thereof the
1045 following definition:-

1046 “Gas company”, a corporation originally organized for the purpose of making and selling
1047 or distributing and selling gas within the commonwealth, even though subsequently authorized to
1048 make or sell electricity. A gas company may make, sell, or distribute utility-scale non-emitting
1049 thermal energy, including networked geothermal and deep geothermal energy. A gas company
1050 may also make, sell, or distribute geothermal energy to individual customers, if approved by the
1051 department.

1052 SECTION 37. Said section 1 of said chapter 164, as so appearing, is hereby further
1053 amended by inserting after the definition of “Petroleum products” the following definition:-

1054 “Portable solar generation device”, a moveable photovoltaic generation device that: (i)
1055 has a maximum power output of not more than 1,200 watts; (ii) is designed to be connected to a
1056 building’s electrical system through a standard 120-volt alternating current outlet; (iii) is
1057 intended primarily to offset part of the customer's electricity consumption; (iv) includes a device
1058 or feature that prevents the system from energizing the building’s electrical system during a
1059 power outage; (v) meets the standards of the most recent version of the National Electrical Code;

and (vi) is certified by Underwriters Laboratories or an equivalent nationally recognized testing laboratory.

SECTION 38. Said section 1 of said chapter 164, as so appearing, is hereby further amended by inserting after the definition of “Supplying electricity in bulk” the following definition:-

“Total Resource Cost Test,” a cost-screening tool administered by the Department of Public Utilities to determine cost-effectiveness for programs or measures within the energy efficiency investment plans proposed by electric distribution companies and municipal aggregators with certified efficiency plans or natural gas efficiency investment plans proposed by gas companies pursuant to section 21 of chapter 25. A program or measure shall be deemed cost-effective when the present value of the lifetime benefits of the program or measure is greater than or equal to the present value of the lifetime costs. Benefits shall include avoided energy costs, avoided capacity costs, avoided transmission and distribution costs, and other resource savings directly attributable to the sector. Costs shall include all incremental program administrator costs, participant costs, and other resource costs necessary for implementation. The calculation of benefits shall not include the social value of greenhouse gas emissions reductions.

SECTION 39. Section 1A of said chapter 164, as so appearing, is hereby amended by adding the following subsection:-

(h) Neither this section nor sections 1B to 1H, inclusive, shall preclude an electric company or a distribution company from competitively procuring sources of energy generation or energy transportation services, or a combination thereof, provided that a proposal for such generation or transportation services, or both, shall be:

1082 (1) secured by a long-term contract executed by an electric company or distribution
1083 company with terms of one year or greater;

1084 (2) subject to the review and approval of the department of public utilities under section
1085 ninety-four A, before becoming effective; and

1086 (3) meets the following criteria, as determined by the department:

1087 (a) is cost-effective to electric and gas ratepayers in the commonwealth over the contract
1088 term, taking into consideration potential economic and environmental benefits and opportunities
1089 to allocate to, or share costs, on a fair and equitable basis with other states and populations
1090 within other states that may benefit from such contracts, among other benefits;

1091 (b) provides enhanced electricity reliability, system safety and energy security;

1092 (c) contributes to the mitigation of winter electricity price spikes;

1093 (d) provides energy price-suppression benefits;

1094 (e) where feasible, creates and fosters economic development and quality jobs in the
1095 commonwealth;

1096 (f) includes benefits to environmental justice populations and low-income ratepayers in
1097 the commonwealth; and

1098 (g) includes opportunities for diversity, equity and inclusion, including, at a minimum, a
1099 workforce diversity plan.

1100 An electric or distribution company shall be entitled to recover contract payments and
1101 associated costs necessary to procure and execute contracts presented to the department for

1102 approval pursuant to this section. Such electric or distribution company shall propose to the
1103 department a cost allocation methodology that allows such costs to be recovered through rates
1104 approved for such company, as well as affiliated gas company customers, to the extent benefits
1105 from any contracts approved pursuant to this section are demonstrated to accrue in part to such
1106 customers.

1107 SECTION 40. Said chapter 164, as so appearing, is hereby amended by striking out
1108 section 1B, and inserting in place thereof the following section:-

1109 Section 1B. (a) The department shall define service territories for each distribution
1110 company by March 1, 1998, based on the service territories actually served on July 1, 1997, and
1111 following to the extent possible municipal boundaries. After March 1, 1998, until terminated by
1112 effect of law or otherwise, the distribution company shall have the exclusive obligation to
1113 provide distribution service to all retail customers within its service territory, and no other person
1114 shall provide distribution service within such service territory without the written consent of such
1115 distribution company which shall be filed with the department and the clerk of the

1116 (b) Each distribution company shall provide its customers with default service and shall
1117 offer a default service rate to its customers who have chosen retail electricity service from a non
1118 utility affiliated generation company or supplier but who require electric service because of a
1119 failure of such company or the supplier to provide contracted service or who, for any reason,
1120 have never chosen or have stopped receiving such service. The distribution company shall
1121 procure supply for such service through competitive bidding or through such other process
1122 approved by the department, including procurements of varying lengths and in combination with
1123 other distribution companies; provided, however, that standard default service rates, excluding

1124 time-varying rates and monthly variable service rates, for residential customers shall be changed
1125 no less than once every six months. Any department-approved provider of service, including an
1126 affiliate of a distribution company, shall be eligible to participate in the competitive bidding
1127 process. The department may require a separate mechanism for recovering certain charges, to be
1128 itemized separately on a customer bill, including, but not limited to, those in connection with the
1129 wholesale electric markets as administered by ISO New England, Inc. or federal tariffs on
1130 imports to such markets. In implementing the provisions of this section, the department shall
1131 ensure universal service for all ratepayers and sufficient funding to meet the need therefor.

1132 (c) Notwithstanding the provisions of section 5D of chapter 25, the department and the
1133 department of energy resources shall have access to all information associated with the bids
1134 selected by the distribution company pursuant to the competitive bidding process in this section;
1135 provided, however that such information shall not be deemed to be a public record as defined in
1136 clause 26 of section 7 of chapter 4 and shall not be subject to demand for production under
1137 section 10 of chapter 66; provided, however, that aggregates of such information may be
1138 prepared and such aggregates shall be public records.

1139 (d) The department is hereby authorized and directed to promulgate rules and regulations
1140 necessary to carry out the provisions of this section, including the procedure for default service
1141 procurement and governing a customer's ability to return to the default service after choosing
1142 retail access from a non-utility affiliated generation company.

1143 SECTION 41. The first paragraph of section 1D of said chapter 164, as so appearing, is
1144 hereby amended by adding the following sentence:-

1145 Not later than August 1, 2026, each distribution company's standard billing format for
1146 residential customers shall display a breakdown of charges for distribution service to inform
1147 customers of the portion of the delivery charge attributable to system benefit programs offered
1148 by a gas or electric company, or make other such changes to improve customer understanding of
1149 the components of the gas and electric bill and to provide clarity on what costs are causing
1150 increases to the total amount of a customer's bill.

1151 SECTION 42. Said section 1D of said chapter 164, as so appearing, is hereby amended
1152 by striking out the fourth paragraph and inserting in place thereof the following paragraph:-

1153 For electric suppliers who have chosen the complete billing method, the electric
1154 distribution company shall make timely payments to such suppliers in accordance with this
1155 paragraph. The distribution company shall: (a) bill all of the electric supplier's customers in a
1156 service class according to complete billing; (b) pay such suppliers the full amounts due from
1157 customers for generation services in a time period consistent with the average payment period of
1158 the participating class of customer, less a percentage of such amounts that reflects the average of
1159 the uncollectible bills for the participating customer classes of the electric distribution company
1160 and other reasonable development, operating or carrying costs incurred, as approved by the
1161 department; provided, however, that the department may establish through a formal stakeholder
1162 proceeding a structure for the electric distribution companies to file for approval by the
1163 department different percentage discounts for suppliers other than municipal aggregation
1164 suppliers based on the supplier's amount of uncollectible bills or percentage of customers in
1165 arrears relative to the average of the uncollectible bills for the participating classes of the electric
1166 distribution company or the average number of customers in arrears.

1167 SECTION 43. Paragraph (1) of section 1F of said chapter 164, as so appearing, is hereby
1168 amended by striking out subparagraphs (ii) and (iii) and inserting in place thereof the following 4
1169 subparagraphs:-

1170 (ii) All private, non-profit, or co-operative aggregators established pursuant to sections
1171 135, 136, and 137 seeking to do business in the commonwealth shall submit a license application
1172 to the department, subject to rules and regulations promulgated by the department and subject to
1173 the payment of a fee, the amount to be determined by the department.

1174 (iii) All energy brokers, energy marketers, and suppliers seeking to do business in the
1175 commonwealth shall submit a license application to the department, subject to rules and
1176 regulations promulgated by the department, and be subject to an annual fee, the amount to be
1177 determined by the department; provided, said amount shall not be more than \$10,000 and may be
1178 differentiated between energy brokers, energy marketers, and suppliers.

1179 (iv) Each energy marketer or other supplier that applies for a retail license shall execute
1180 and maintain a bond issued by a qualifying surety or insurance company authorized to transact
1181 business in the commonwealth of Massachusetts in favor of the commonwealth. The amount of
1182 the bond shall equal \$5,000,000 per retail license as issued by the department. The bond shall be
1183 conditioned upon the full and faithful performance of all duties and obligations of the applicant
1184 as a retail supplier and shall be valid for a period of not less than 1 year. The cost of the bond
1185 shall be paid by the applicant. The applicant shall file a copy of this bond, with a notarized
1186 verification page from the issuer, as part of its application for certification.

1187 (v) Any energy marketer shall be a legal agent of the supplier. No energy marketer may
1188 sell electric generation services on behalf of a supplier unless such energy marketer has received

appropriate training directly from such supplier. This subparagraph shall not apply to third-party brokers or consultants or agents acting on behalf of customers that are compensated by the customer as part of the customer's electric contract price.

SECTION 44. Said section 1F of said chapter 164, as so appearing, is hereby further amended by striking out paragraph (4).

SECTION 45. Paragraph (7) of said section 1F of said chapter 164, as so appearing, is hereby further amended by striking out the fifth through seventh sentences and inserting in place thereof the following 2 sentences:-

If the department, after a hearing or other proceeding, determines that a distribution company, person, firm, supplier, or other corporation doing business in the commonwealth who has violated any provisions of said code or of any rule or regulation promulgated by the department pursuant to sections 1A to 1H, inclusive, section 1L, or any provision of chapter 93A of the General Laws or corresponding regulations, pursuant to authority established by section 102C, the department may impose a civil penalty and impose any other terms or conditions that the department considers appropriate, including, but not limited to restitution to specific customers harmed by the violation in question and suspension or revocation of the business' retail license. Civil penalties imposed under this subsection shall not exceed \$100,000 for each violation and for each day that the violation persists, shall be capped at a maximum of \$10,000,000, and shall not be inclusive of any financial restitution the department requires to be provided to specific customers determined to be harmed by such violation.

1209 SECTION 46. Paragraph (8) of said section 1F of said chapter 164, as so appearing, is
1210 hereby further amended by striking out, in line 336, the words “30 days” and inserting in place
1211 thereof the following words:- 2 years.

1212 SECTION 47. Said chapter 164, as so appearing, is hereby amended by inserting after
1213 section 1K the following 2 sections:-

1214 Section 1L. (a) A licensed supplier other than a municipal aggregation supplier shall not
1215 provide electric supply service to a low-income residential customer. For the purpose of this
1216 section, “low-income residential customer” shall mean a customer actively enrolled in an R2
1217 electric rate tariff.

1218 (b) A licensed supplier offering electric service to a residential customer other than a
1219 municipal aggregation supplier:

1220 (i) may not automatically renew a residential customer’s fixed-rate contract to a
1221 variable-rate contract.

1222 (ii) may automatically renew a residential customer’s contract provided that:

1223 (1) the customer provides affirmative consent to automatic renewal at the time of
1224 enrollment or anytime thereafter; and

1225 (2) The supplier provides renewal notices prior to contract expiration as follows: (i) at
1226 least 60 days prior; (ii) at least 30 days prior—clearly disclosing the renewal rate, term, and opt
1227 out method; and (iii) a final reminder at least 15 days prior.

1228 (iii) may not offer to a residential customer a variable rate other than a rate that adjusts
1229 for seasonal variation more than twice in a single year or a time-of-use rate that establishes

1230 different rates for periods within a single day, or as otherwise approved by the department; (iii)
1231 shall, for all in-person sales and telephonic sales, conduct third-party verification confirming the
1232 customer's affirmative and informed consent to the terms of enrollment; (iv) may not impose on
1233 a residential customer a fee for cancellation or early termination of an electricity supply
1234 agreement; and (v) offer a voluntary renewable or green energy product, provided that:

1235 (1) The supplier discloses to the residential customer in plain language and prior to
1236 enrollment, that the customer will not receive electricity directly from renewable generating units
1237 and that the supplier will acquire and retire renewable energy certificates ("RECs") or other
1238 eligible clean energy attributes in an amount equal to the customer's usage.

1239 (2) The disclosure identifies the resource type(s) and geographic origin(s) of the RECs to
1240 be retired. If such information is not available at the time of enrollment, the supplier shall
1241 disclose the resource type(s) and geographic origin(s) of RECs retired for a substantially similar
1242 product over the prior twelve (12) months, and provide the specific product's REC details to the
1243 residential customer within sixty (60) days after the first billing cycle.

1244 (3) The RECs are sourced from any certificate tracking system that assigns unique serial
1245 numbers, records issuance, transfer, and retirement, and prevents double counting.

1246 (4) The supplier annually reports to the department the amount, type, and location of
1247 clean or renewable attributes retired on behalf of residential customers, and the percentage
1248 retired in excess of applicable portfolio requirements.

1249 (c) The department shall establish and maintain a public website for residential customers
1250 to compare available retail electricity supply products. Suppliers must list at least one product
1251 available to residential customers on said website. The department shall ensure that the website

1252 includes, but is not limited to, all of the following information: (i) the current, and where
1253 possible, future default service rate available to a customer pursuant to section 1B; (ii) the default
1254 supply rate of any municipal aggregation offering available to a customer pursuant to section
1255 134; (iii) the contract term for all products listed; (iv) the percentage of renewable or clean
1256 energy content included in the product, including information on the source or location of such
1257 content, as determined by the department; (v) all additional products and services included as
1258 part of the product; and (vi) the estimated monthly cost to the customer. The website shall allow
1259 for products to be sorted and compared to each other.

1260 (d) No less than quarterly, suppliers shall provide to the department: (i) a list detailing
1261 each rate the supplier charged to residential retail customers in the last quarter; and (ii) the
1262 number of low-income and non-low-income residential retail customers charged each rate
1263 included in such list by rate class. The department shall publish average rates charged to
1264 customer classes and the aggregate number of customers served on the department's website.
1265 Any information regarding competitive supply that the department makes available to the public
1266 shall be presented only in aggregated or anonymized form and shall not include supplier-specific
1267 pricing, offers, or terms. Supplier-submitted pricing and other commercially-sensitive
1268 information shall be treated as confidential and used solely for regulatory oversight and market
1269 monitoring.

1270 (e) No less than annually, suppliers shall provide data to the department concerning any
1271 clean or renewable energy attributes retired in connection with the generation service provided to
1272 individual residential retail customers. Such data shall include the geographic location and fuel
1273 type of each such attribute, and the percentage of the supply purchased in excess of the supplier's
1274 annual obligations under the clean and renewable energy portfolio standards established by the

department of environmental protection and department of energy resources, respectively. The department shall publish this information from each supplier on its website. Any information regarding competitive supply that the department makes available to the public shall be presented only in aggregated or anonymized form and shall not include supplier-specific pricing, offers, or terms. Supplier-submitted pricing and other commercially-sensitive information shall be treated as confidential and used solely for regulatory oversight and market monitoring.

(f) A licensed supplier shall provide written notice to the department prior to any assignment or transfer of their supplier license. Notice shall be provided to the department at least thirty days prior to the effective date of the proposed assignment or transfer. The department may, upon its review of such notice, require certain conditions or deny assignment or transfer of the license.

(g) No less than quarterly, the department shall publish each supplier's and electric and gas distribution companies' complaint data, sourced from complaints made to the department as well as those made to the attorney general, as provided to the department annually, on the department's website.

(h) Notwithstanding any general or special law to the contrary, nothing in this Section shall be construed to apply to any entity organizing or administering a program pursuant to section 137 of chapter 164.

Section 1M. Notwithstanding any general or special law to the contrary, a distributed energy resource generation facility with a total export capacity up to 500kWAC seeking interconnection to the electric distribution system shall be subject to an expedited interconnection review process based on existing hosting capacity separate from any group study

1297 process administered by a distribution company, and shall not be subject to any Area System
1298 Operator study. Projects shall be eligible where existing feeder-level hosting capacity, excluding
1299 the total capacity of in queue projects subject to group study, exceeds the export capacity of the
1300 applicant. The review and award of interconnection agreement for such application shall be
1301 completed not later than 120 days after the date the application is determined to be complete.
1302 Such applicant meeting these criteria shall not be responsible for substation upgrade-related
1303 costs.

1304 SECTION 48. Said chapter 164, as so appearing, is hereby amended by striking out
1305 section 15, as so appearing, and inserting in place thereof the following section:-

1306 Section 15. A gas or electric company, under the supervision of the department, selling,
1307 offering for sale or issuing, bonds, debentures, notes or other evidences of indebtedness,
1308 exclusive of stock, payable at periods of more than 5 years after the date thereof, shall invite
1309 proposals for the purchase thereof. The department shall find that the manner of solicitation of
1310 such proposals demonstrates a measure of competition and is in the public interest. Said
1311 company may, however, reserve the right to reject any and all proposals.

1312 SECTION 49. Section 15A of said chapter 164, as so appearing, is hereby amended by
1313 striking out, in line 5, the word, “than”, and inserting in place thereof the word, “that”.

1314 SECTION 50. Said chapter 164, as so appearing, is hereby amended by striking out
1315 section 33A and inserting in place thereof the following section:-

1316 Section 33A. (a) For the purposes of this section, the following words and phrases shall
1317 have the following meanings:-

1318 "Advertising", the commercial use by a utility of any media, including newspaper, social
1319 media, printed matter, radio, and television, in order to transmit a message to a substantial
1320 number of members of the public or to such utility's consumers, including any costs associated
1321 with research, analysis, preparation, planning, or any other related costs identified by the
1322 department as related to public communication whose purpose is to promote the sale or
1323 consumption of natural gas, electricity, or other thermal energy, unless such advertising is
1324 specifically approved or ordered by the department.

1325 "Goodwill or institutional advertising", means any advertising designed primarily to
1326 bring the utility's name before the general public in such a way as to solely improve the image of
1327 the utility or to promote the utility or the industry.

1328 "Political advertising", any advertising for the purpose of influencing public opinion with
1329 respect to legislative, administrative, or electoral matters.

1330 "Promotional advertising", any advertising for the purpose of encouraging any person to
1331 select or use the service or additional service of a utility regulated by the department, or the
1332 selection or installation of any appliance or equipment designed to use such utility's service.

1333 For the purposes of this section, the terms "goodwill or institutional advertising,"
1334 "political advertising," and "promotional advertising" shall not include advertising which informs
1335 consumers of any utility on how they can conserve energy, access money saving rates or
1336 programs, seek assistance or customer support, prepare for weather events, reduce peak demand
1337 for energy, or other services, such as building decarbonization or other electrification measures,
1338 or otherwise use the services of any utility in a cost-efficient manner; is required by federal or
1339 state laws or regulations; informs consumers regarding service interruptions, safety measures, or

1340 emergency conditions; concerns employment opportunities with a utility; or relates to any
1341 explanation or justification of existing or proposed rate schedules, or notification of hearings
1342 thereon which informs consumers of and stimulates the use of products or services which are
1343 subject to direct competition from products or services of entities not regulated by the
1344 department or any other government agency. A communication shall be considered advertising,
1345 goodwill or institutional advertising, promotional advertising, or political advertising if any
1346 portion of the communication is advertising, goodwill or institutional advertising, promotional
1347 advertising, or political advertising as defined herein.

1348 (b) No gas or electric company regulated by the department under this chapter may
1349 recover from any ratepayer of such company any direct or indirect expenditure by such company
1350 for goodwill or institutional, promotional, or political advertising as defined in this section.

1351 (c) No gas or electric company regulated by the department shall recover through rates
1352 any direct or indirect cost associated with: (i) membership, dues, sponsorships, or contributions
1353 to any entity incorporated under Section 501 of the Internal Revenue Code of 1986, as amended,
1354 including business or trade associations; (ii) charitable giving expenses, including contributions
1355 in cash or other quantifiable value to organizations qualified under section 501(c)(3) or 501(c)(4)
1356 of the Internal Revenue Code of 1986, as amended; (iii) executive or legislative lobbying, as
1357 those terms are defined in section 39 of chapter 3, or soliciting others to engage in executive or
1358 legislative lobbying, including any costs for activities associated with lobbying such as policy
1359 research, analysis, preparation, and planning undertaken in support of lobbying; (iv)
1360 contributions to political candidates, campaign committees, issue committees, or independent
1361 expenditure committees or other political expenses; (v) any costs, including marketing,
1362 administration, customer service, or other costs, for products or services not regulated by the

1363 department, unless determined by the department to be reasonable; (vi) tax penalties or fines
1364 issued against such company, unless determined by the department to be reasonable; (vii) travel,
1365 lodging, entertainment, gifts or food and beverage expenses for such company's board of
1366 directors, trustees, and external advisory councils not required by the department or legislature,
1367 or the board of directors and officers of the parent of such company; or (viii) any owned, leased
1368 or chartered aircraft for such company's board of directors, trustees, external advisory councils,
1369 and officers or the board of directors and officers of the parent of such company.

1370 (d) No gas or electric company regulated by the department shall recover through rates its
1371 direct or indirect costs associated with its attendance in, participation in, preparation for, or
1372 appeal of any contested proceeding conducted before the department. Such costs shall include,
1373 but need not be limited to, attorneys' fees, fees to engage expert witnesses or consultants, the
1374 portion of employee salaries associated with such attendance, participation, preparation or appeal
1375 of a contested proceeding and related costs identified by the department.

1376 (e) The department and the office of ratepayer advocacy established pursuant to section
1377 11E of chapter 12 shall monitor and investigate compliance and noncompliance with this section.
1378 If the department determines that a gas or electric company regulated by the department
1379 improperly recorded an expense for which recovery is prohibited by this section, the department
1380 shall assess a non-recoverable penalty against such company in an amount that is not less than
1381 the total amount of costs improperly recorded. In addition to assessing a non-recoverable penalty
1382 against a company pursuant to this subsection, the department shall order such company to
1383 refund the amount improperly recovered, plus interest, to customers. For each penalty assessed
1384 and collected from any such company pursuant to this section, a portion of the penalty, as
1385 determined by the department, may be distributed to ratepayers through a rebate, or distributed to

1386 the department and the office of ratepayer advocacy for the purpose of increasing resources for
1387 enforcing this section.

1388 SECTION 51. Section 69G of said chapter 164, as so appearing, is hereby amended, in
1389 line 52, by inserting after the word “project” the following words:- , including the use of surplus
1390 interconnection service.

1391 SECTION 52. Said section 69G of said chapter 164, as so appearing, is hereby further
1392 amended by inserting after the definition of “Solar facility” the following definition:-

1393 “Surplus interconnection service”, a form of interconnection service that allows a
1394 generation facility to use any unused capability, as such term is defined in Schedule 22 to the
1395 ISO-New England Tariff , established in an interconnection agreement for an existing generating
1396 facility that has achieved commercial operation such that if surplus interconnection service is
1397 utilized, the total amount of interconnection service at the same point of interconnection, as such
1398 term is defined in Schedule 22 to the ISO-New England Tariff , would remain the same;
1399 provided however, that the board shall amend the definition of “surplus interconnection service”,
1400 and any terms therein, so that it conforms to subsequently adopted modifications to the
1401 referenced Schedule of the ISO-New England Tariff.

1402 SECTION 53. Section 69H of said chapter 164, as so appearing, is hereby amended, in
1403 line 42, by inserting after the word “alternatives the following words:- , including the use of
1404 surplus interconnection service,.

1405 SECTION 54. Section 69I of said chapter 164, as so appearing, is hereby amended by
1406 adding the following paragraph at the end thereof:-

1407 The department is authorized to require any electric or gas company to satisfy any or all
1408 provisions of this section upon a determination, after notice and a hearing, that such provisions
1409 are applicable for an electric or gas company to demonstrate that energy supply procurements
1410 under section ninety-four A, should be approved by the department to ensure a necessary energy
1411 supply for the commonwealth with a minimum impact on the environment at the lowest possible
1412 cost.

1413 SECTION 55. Section 69J of said chapter 164, as so appearing, is hereby amended, in
1414 line 36, by inserting after the word “energy” the following words:- use of surplus interconnection
1415 service,.

1416 SECTION 56. Section 69T of said chapter 164, as so appearing, hereby amended by
1417 inserting after the word “including”, in line 52, the following words:- ,surplus interconnection
1418 service and other.

1419 SECTION 57. Section 92B of said chapter 164, as so appearing, is hereby amended by
1420 striking out paragraphs (c) through (e) and inserting in place thereof the following paragraphs:-

1421 (c) An electric-sector modernization plan developed pursuant to subsection (a) shall also
1422 include the following:

1423 (i) a load management and virtual power plant plan that, based on the best available data,
1424 minimizes ratepayer costs and maximizes ratepayer benefits of distributed energy resources and
1425 distributed generation to the greatest extent possible, which shall include, but not be limited to:

1426 (A) a detailed summary and timeline for all current, proposed, and under development
1427 programs and investments, including all investments and programs developed as part of the

1428 statewide decarbonization and energy efficiency plan authorized under section 21 of chapter 25
1429 of the General Laws, all investments and programs authorized by the department related to
1430 electric grid modernization, building electrification, transportation electrification, and distributed
1431 energy resources, and all efforts to make use of advanced metering infrastructure, that (i) directly
1432 or indirectly manage energy demand to reduce its impact on and provide benefits to the electric
1433 power system or (ii) utilize or otherwise enable dispatchable distributed energy resources to
1434 provide benefits or services to the electric grid including, but not limited to, reducing, deferring,
1435 or eliminating transmission or distribution infrastructure investments, avoiding development of
1436 new fossil-based power generation, reducing wholesale energy market costs, or enabling
1437 wholesale energy market participation;

1438 (B) quantitative five- and ten-year targets for peak load reduction, including targets for
1439 system-wide peak and separate targets for non-coincident sub-system peaks, and electric system
1440 benefits for both load management and virtual power plants that are inclusive of, but not limited
1441 to, targets set as part of the statewide decarbonization and energy efficiency plan and any other
1442 plans approved by the department;

1443 (C) a qualitative and quantitative evaluation of the benefits of such programs to reduce,
1444 defer or eliminate the need for transmission or distribution infrastructure investments, including
1445 but not limited to, all cases where such programs reduce, defer or eliminate specific, future
1446 infrastructure investment needs identified through the company's current or prior electric-sector
1447 modernization plans or through the company's core capital planning process, as applicable;

1448 (D) a detailed methodology and approach for ensuring that such programs are optimized
1449 to reduce, defer or eliminate infrastructure investment needs identified through the company's

1450 current or prior electric-sector modernization plans or through the company's core capital
1451 planning process. Such methodology shall be as consistent as practicable with the comparable
1452 methodology employed by each other electric company.

1453 (E) a description and summary of current, proposed, and under development plans and
1454 processes to enable third-party providers to provide load management and virtual power plant
1455 services, including but not limited to, how such services will be used to reduce, defer, or
1456 eliminate infrastructure investment needs, the status of any past, current, or planned
1457 procurements of grid services from third parties, and information on how third parties can
1458 participate in programs and access customer electric usage data to enable load management and
1459 virtual power plant services.

1460 (ii) information on the flexible interconnection program required under section 159,
1461 including, but not limited to:

1462 (A) a detailed summary of the flexible interconnection program and a timeline for all,
1463 additional proposed and under development alternative interconnection solutions, and associated
1464 investments, that meet the definition of flexible interconnection under subsection (a) of section
1465 159, including, but not limited to, relevant efforts to make use of advanced metering
1466 infrastructure and smart inverters;

1467 (B) a qualitative and quantitative evaluation of the benefits of the flexible interconnection
1468 program and proposed and under development alternative interconnection solutions to reduce,
1469 defer or eliminate the need for transmission or distribution infrastructure investments, including
1470 but not limited to all cases where the flexible interconnection program and proposed and under
1471 development alternative interconnection solutions reduce, defer or eliminate specific

1472 infrastructure investment needs identified through the company's current or prior electric-sector
1473 modernization plans or through the company's core capital planning process, as applicable.

1474 (iii) a comprehensive description and summary of how the load management and virtual
1475 power plant plan provided pursuant to paragraph (i) and the flexible interconnection program
1476 required under section 159 are integrated with other distribution system planning efforts to most
1477 effectively reduce costs and maximize benefits to ratepayers, advance energy affordability, and
1478 help the commonwealth realize its statewide greenhouse gas emissions limits and sublimits under
1479 chapter 21N.

1480 (d) In developing a plan pursuant to subsection (a), an electric company shall:

1481 (i) prepare and use 3 planning horizons for electric demand, including a 5-year forecast, a
1482 10-year forecast and a demand assessment through 2050 to account for future trends, including,
1483 but not limited to, future trends in the adoption of renewable energy, distributed energy resources
1484 and energy storage and electrification technologies necessary to achieve the statewide
1485 greenhouse gas emission limits and sublimits under chapter 21N;

1486 (ii) consider and include a summary of all proposed and related investments, alternatives
1487 to these investments and alternative approaches to financing these investments that have been
1488 reviewed, are under consideration or have been approved by the department previously;

1489 (iii) solicit input from the Grid Modernization Advisory Council established in section
1490 92C on topics such as planning scenarios and modeling and the requirements of subsection (c)
1491 and respond to information and document requests from said council;

1492 (iv) solicit input from the entities listed in subsection (b) of section 3 of chapter 43D of
1493 the General Laws, the chair of the interagency permitting board established by section 62 of
1494 chapter 23A of the General Laws and the Massachusetts office of business development
1495 established by section 1 of chapter 23A regarding the planning scenarios, modeling, and
1496 proposed investments related to economic development and new housing;

1497 (v) solicit input from third-party providers of services that directly or indirectly manage
1498 energy demand to reduce its impact on and provide benefits to the electric power system or
1499 utilize or otherwise enable dispatchable distributed energy resources to provide benefits or
1500 services to the electric grid;

1501 (vi) conduct technical conferences and not less than 2 stakeholder meetings to inform the
1502 public, appropriate state and federal agencies, companies engaged in the development and
1503 installation of distributed generation, energy storage, vehicle electrification systems and building
1504 electrification systems, third-party providers of load management and virtual power plant
1505 services and Massachusetts businesses and housing developers; and

1506 (vii) prepare and file a climate vulnerability and resilience plan with the electric-sector
1507 modernization plan based on best available data, which shall include, but not be limited to, the
1508 following:

1509 (A) an evaluation of the climate science and projected sea level rise, extreme
1510 temperature, precipitation, humidity and storms and other climate-related risks for the service
1511 territory;

1512 (B) an evaluation and risk assessment of potential impacts of climate change on existing
1513 operation, planning and physical assets;

1514 (C) identification, prioritization and cost-benefit analysis of adaptation options to
1515 increase asset and system-wide resilience over time;

1516 (D) a community engagement plan with targeted engagement for environmental justice
1517 populations in the service territory; and

1518 (E) an implementation timeline for making changes in line with the findings of the study
1519 such as modifying design and construction standards, modifying operations and planning
1520 processes and relocating or upgrading existing infrastructure to ensure reliability and resilience
1521 of the grid.

1522 (e) An electric company shall submit its first plan for review, input and recommendations
1523 to the Grid Modernization Advisory Council established in section 92C by September 1, 2023,
1524 and thereafter once every 5 years in accordance with a schedule determined by the department;
1525 provided, however, that the plan shall be submitted to the Grid Modernization Advisory Council
1526 not later than 150 days before the electric company files the plan with the department; and
1527 provided further, that the Grid Modernization Advisory Council shall return the plan to the
1528 company with recommendations not later than 70 days before the company files the plan with
1529 the department.

1530 An electric company shall submit its electric-sector modernization plan, together with a
1531 demonstration of the Grid Modernization Advisory Council's review, input and
1532 recommendations, including, but not limited to, a list of each individual recommendation, the
1533 status of each recommendation and an explanation of whether and why each recommendation
1534 was adopted, adopted as modified or rejected, along with a statement of any unresolved issues, to
1535 the department in accordance with a schedule determined by the department. An electric

1536 company shall also submit a list of the entities engaged as required in paragraphs (iv) and (v) of
1537 subsection (d) and a summary of the input provided by such entities.

1538 The electric company shall be permitted to include in base electric distribution rates all
1539 prudently incurred plant additions that are used and are useful. The department shall promptly
1540 consider the plan and shall provide an opportunity for interested parties to be heard in a public
1541 hearing. The department shall approve, approve with modifications or reject the plan within 7
1542 months of submittal. In order to be approved, a plan shall provide net benefits for customers and
1543 meet the criteria enumerated in clauses (i) to (vi), inclusive, of subsection (a).

1544 (f) An electric-sector modernization plan developed by an electric company pursuant to
1545 subsection (a) shall propose discrete, specific, enumerated investments to the distribution and,
1546 where applicable, transmission systems, alternatives to such investments and alternative
1547 approaches to financing such investments, that facilitate grid modernization, greater reliability,
1548 communications and resiliency, increased enablement of distributed energy resources, increased
1549 transportation electrification, increased building electrification, accommodate increased
1550 economic development and new housing and the minimization or mitigation of ratepayer
1551 impacts, in order to meet the statewide greenhouse gas emissions limits and sublimits under
1552 chapter 21N. An electric company shall submit 2 reports per year to the department and the joint
1553 committee on telecommunications, utilities and energy on the deployment of approved
1554 investments in accordance with any performance metrics included in the approved plans. An
1555 electric-sector modernization plan developed by an electric company pursuant to subsection (a)
1556 shall also propose distribution and, where applicable, transmission system planning, Grid
1557 Modernization Advisory Council and stakeholder engagement, and regulatory processes to

1558 ensure that the criteria enumerated in clauses (i) to (vi), inclusive, of subsection (a) are met
1559 throughout the five-year electric-sector modernization plan period.

1560 SECTION 58. Said chapter 164, as so appearing, is hereby amended by inserting after
1561 section 92C the following section:-

1562 Section 92D. (a) By July 1, 2028, the department shall establish a comprehensive
1563 distribution system planning and cost recovery framework that encompasses the electric-sector
1564 modernization plans and the discrete investments identified therein, base distribution rates and
1565 associated applications, reconciliation charges and associated filings, and other department
1566 proceedings and electric company filings deemed relevant by the department. Such framework
1567 shall apply to any petition to amend electric rates filed with the department in accordance with
1568 section 94 on or after July 1, 2028.

1569 (b) The framework required in subsection (a) shall seek to accomplish the following
1570 objectives: (i) minimizing costs to ratepayers, including through the use of non-wires alternatives
1571 and virtual power plants; (ii) consolidating the proceedings through which distribution system
1572 planning is conducted; (iii) consolidating the number of proceedings and charges through which
1573 the electric companies may seek cost recovery; (iv) aligning distribution system plans and
1574 investments included in rate applications filed in accordance with section 94 and the electric-
1575 sector modernization plans filed in accordance with section 92B; (v) ensuring that rate
1576 applications filed in accordance with section 94 present a complete picture of current and future
1577 electric company capital and operating expenditures regardless of how such costs have
1578 historically been recovered; (vi) prioritizing cost recovery mechanisms that adjust base
1579 distribution rates over time instead of reconciliation charges; (vii) optimizing distribution system

investments to meet distribution system needs, including those enumerated in subsection (a) of section 92B; (viii) considering incentive mechanisms to align the interests of the electric companies, ratepayers, and developers; (ix) maximizing transparency, accessibility, and meaningful participation for stakeholders in the development and regulatory review of distributions system plans and associated investments.

(c) The framework required in subsection (a) may also include a process by which each electric company may submit an application for preliminary review of discrete, specific, enumerated investments consistent with the electric-sector modernization plan most recently approved by the department to be recovered through base distribution rates, and criteria under which the electric company may make investments to serve incremental electricity demand or incremental distributed generation before such demand or generation materializes.

SECTION 59. Said chapter 164, as so appearing, is hereby further amended by inserting after section 92D the following section:-

Section 92E. To support interconnection of distributed energy resources by diminishing the risk to interconnecting customers of multi-year interest carrying costs associated with interconnection deposits, effective immediately, the electric distribution companies shall accept a surety bond or letter of credit in lieu of cash, at the discretion of the interconnecting customer, for common system modification payments required under an interconnection service agreement to commence construction of required electric power system upgrades.

Bonds or letters of credit shall both be accepted in lieu of 100 per cent of the cost of interconnection included in an interconnection service agreement. Following the posting of a bond or letter of credit the electric distribution company shall invoice for cash payments in

alignment with actual spending and costs incurred by the company, on a mutually agreed upon monthly, quarterly, or milestone timeline or following completion of construction.

SECTION 60. Section 94 of said chapter 164, as so appearing, is hereby amended by striking out the first paragraph, as so appearing, and inserting in place thereof the following:-

Section 94. (a) Electric companies and gas companies shall file with the department schedules, not less frequently than every 5 years, under a filing schedule as prescribed by the department and in such form as the department shall prescribe, showing all rates, prices and charges to be charged or collected within the commonwealth for the sale and distribution of gas or electricity, together with all forms of contracts to be used in connection with such schedules; provided, however, that the requirement to file a schedule with the department not less frequently than every 5 years shall not apply to a company or corporation as defined in section 1 of chapter 165. Rates, prices and charges in such a schedule may be changed by any such company by filing a schedule setting forth the changed rates, prices and charges; provided, however, that until the effective date of any such change no different rate, price or charge shall be charged, received or collected by the company filing such a schedule from those specified in the schedule then in effect; provided, further, that a company may: (i) continue to charge, receive and collect rates, prices and charges under a contract lawfully entered into before the schedule takes effect or until the department otherwise orders, after notice to the company, a public hearing and makes a determination that the public interest so requires; and (ii) sell and distribute gas or electricity under a special contract hereafter made at rates or prices differing from those contained in a schedule in effect; provided, further, that a copy of the contract, in each instance, shall be filed with the department, except that a contract of a company whose sole business in the

commonwealth is the supply of electricity in bulk need not file, except as may be required by the department.

SECTION 61. Said section 94 of said chapter 164, as so appearing, is hereby further amended by inserting at the end thereof, the following:-

(b) The department of public utilities shall direct the gas and electric distribution companies to commence a coordinated initiative to perform a comprehensive customer bill-impact assessment using, as necessary, the assistance of external consultants to (1) develop an energy affordability standard, and (2) an electric and gas ratepayer impact measure test to evaluate existing and future energy programs on a customer bill-impact basis. The electric ratepayer impact measure test shall be consistent with established ratepayer impact measure best practices established by a national organization with expertise in energy program evaluation and shall exclude any costs or benefits that are not direct benefits or costs that may accrue to non-participating customers of the electric distribution company proposing such greenhouse gas reduction program, clean energy program or procurement, workforce development program or electrification program. In accordance with a timeline and process approved by the department, the electric and gas companies shall present a preliminary report to the department proposing a construct for defining energy affordability by economic strata or other denomination and identifying the customer bill impacts associated with the full portfolio of existing energy programs as well as existing distribution service functions. Upon receipt of the preliminary report, the department shall conduct a generic proceeding allowing broad participation by stakeholders for the purpose of evaluating the findings and conclusions of the preliminary report. Based on the input obtained through the generic proceeding and other directives from the department, as applicable, the distribution companies shall submit a final report to the

1647 department. Within ten days thereafter, the department shall submit the final report to the
1648 legislature accompanied by any further comments or findings by the department.

1649 (c) In thereafter investigating the propriety of any proposed rate, price or charge for
1650 electric customers associated with any program or procurement associated with: (1) greenhouse
1651 gas reduction; (2) clean energy; (3) workforce development; or (4) electrification, the department
1652 shall conduct an electric ratepayer impact measure test to determine whether the approval of a
1653 proposed rate, price or charge for such a program will result in a change to the electric per unit
1654 rate consistent with the affordability standard. The department shall further analyze the total bill
1655 impact resulting from any rate changes for non-participating customers associated with such
1656 program or procurement.

1657 Further, in thereafter investigating the propriety of any proposed rate, price or charge for
1658 gas customers associated with any program or procurement associated with: (1) greenhouse gas
1659 reduction; (2) clean energy; (3) workforce development; or (4) electrification, the department
1660 shall conduct a gas ratepayer impact measure test to determine whether the approval of a
1661 proposed rate, price or charge for such a program will result in a change to the gas per unit rate
1662 consistent with the affordability standard. The department shall further analyze the total bill
1663 impact resulting from any rate changes for non-participating customers associated with such
1664 program or procurement. Such a measure shall be consistent with established ratepayer impact
1665 measure best practices established by a national organization with expertise in energy program
1666 evaluation and shall exclude any costs or benefits that are not direct benefits or costs that may
1667 accrue to non-participating customer of the gas distribution company proposing such greenhouse
1668 gas reduction program, clean energy program or procurement, workforce development program
1669 or electrification program.

1670 In proposing or revising any program, regulation or procurement associated with: (1)
1671 greenhouse gas reduction; (2) clean energy; (3) workforce development; or (4) electrification,
1672 funded either directly through electric or gas ratepayer charges or fees or through associated
1673 obligations on energy supplier that may reasonably be assumed to be paid by electric or gas
1674 customers, the department of energy resources, the department of environmental protection, the
1675 Massachusetts clean energy center and the department of public utilities shall conduct a
1676 ratepayer impact measure test to determine the expected increase or decrease in electric or gas
1677 ratepayer rates. The department shall further analyze the total bill impact resulting from any rate
1678 changes for non-participating customers associated with such program, regulation or
1679 procurement. Such a measure shall be consistent with established ratepayer impact measure best
1680 practices established by a national organization with expertise in energy program evaluation and
1681 shall exclude any costs or benefits that do not directly result in a change to non-participating
1682 customers electric or gas rates or bills. To the extent any such program, regulation, or policy
1683 includes distinct sub-targets, goals or differential incentives, a ratepayer impact measure test
1684 shall be calculated for each such distinct sub-target, goal, or differential incentive. The final
1685 results of each such ratepayer impact measure test shall be released to the public, in conjunction
1686 with the publication or announcement of any program, regulation or procurement referenced in
1687 this paragraph.

1688 SECTION 62. Section 94A of said chapter 164, as so appearing, is hereby amended as
1689 follows:-

1690 by striking out, in line 2, the words “gas or electricity”, and by inserting in place thereof
1691 the following words:- “energy supply, including gas, electricity, transmission, transportation or a
1692 combination thereof,”

1693 SECTION 63. Said section 94A is hereby further amended by adding in line 4, the words
1694 “for energy supply” after the words “unless such contract”

1695 SECTION 64. Said section 94A is hereby further amended by striking out, in lines 5, 8,
1696 10, 13 and 16, the words “gas or electricity”, and by inserting in place thereof the words “energy
1697 supply”

1698 SECTION 65. Said chapter 164, as so appearing, is hereby amended by inserting after
1699 section 94I the following section:-

1700 Section 94J: Each natural gas distribution company shall implement default budget
1701 billing for residential customers, calculated by dividing the twelve-month annual gas usage of
1702 each customer into twelve equal monthly amounts at then-current retail rates to be billed to the
1703 residential customer on the customer’s monthly bill, unless a customer chooses to opt-out of the
1704 default budget billing. The bill for customers participating in default budget billing shall be
1705 reviewed in the twelfth month of billed level amounts and shall be reconciled to reflect the actual
1706 retail rates and usage applicable to each customer over the prior twelve-month budget billing
1707 period, with such reconciled amount charged or credited to the respective customer during a non-
1708 peak billing cycle for the customer, as determined by the gas company. Customers shall have the
1709 option of spreading the reconciliation amount over a twelve-month billing cycle. A gas company
1710 may normalize customer usage for weather fluctuations during the prospective annual billing
1711 cycle to calculate level monthly payments, or implement other such methods, to minimize the
1712 impact of year-end reconciliations on customers. The department shall evaluate and modify any
1713 ratemaking procedures, service-quality guidelines or other requirements, as appropriate, to
1714 ensure a gas distribution company is not disadvantaged financially by implementing default

1715 budget billing pursuant to this section. Customers with less than twelve months of historical
1716 usage at the respective service address or a past due balance, shall not be subject to default
1717 budget billing.

1718 SECTION 66. Said chapter 164, as so appearing, is hereby amended by inserting after
1719 section 116C the following section:-

1720 Section 116D. (a) As used in this section the following words shall, unless the context
1721 otherwise requires, have the following meaning:-

1722 “Advanced metering infrastructure customer” or “customer”, a customer of a distribution
1723 company whose electricity usage is measured using advanced metering infrastructure.

1724 (b) (1) Each distribution company deploying advanced metering infrastructure in their
1725 territories to record customers’ electricity usage information shall establish a program, which
1726 shall be called “Energy Bill Watch,” to notify an advanced metering infrastructure customer of
1727 the customer’s electricity usage as provided in paragraph (2) of this subsection.

1728 (2) Under an “Energy Bill Watch” program established pursuant to subsection (a), a
1729 distribution company shall, at a minimum:

1730 (i) notify an advanced metering infrastructure customer on the 10th day of each billing
1731 cycle via text message or, if the distribution company does not possess a customer’s mobile
1732 telephone number, via electronic mail, of the cost in dollars of the customer’s electricity usage
1733 for the billing cycle up to the time at which the notification is sent and the amount in kilowatt
1734 hours of the customer’s electricity usage for the billing cycle up to the time at which the
1735 notification is sent;

1736 (ii) notify a customer on the 20th day of each billing cycle via text message or, if the
1737 distribution company does not possess a customer's mobile telephone number, via electronic
1738 mail, of the cost in dollars of the customer's electricity usage for the billing cycle up to the time
1739 at which the notification is sent and the amount in kilowatt hours of the customer's electricity
1740 usage for the billing cycle up to the time at which the notification is sent;

1741 (iii) provide a customer the option to set a threshold dollar value for the cost of electric
1742 service at which the distribution company will notify the customer via the customer's selection
1743 of text message or electronic mail that the customer has reached the threshold dollar value based
1744 on the customer's electricity usage for that billing cycle; and

1745 (iv) provide a customer with the option to receive a separate notice each billing cycle that
1746 compares the customer's average daily electricity usage from that billing cycle with the
1747 customer's average daily electricity usage from the previous billing cycle or from the same
1748 billing cycle in the previous calendar year.

1749 (3) A distribution company shall:

1750 (i) advertise the electric distribution company's "Energy Bill Watch" program through
1751 multiple methods, including, but not limited to, electronic mail; posts on social media platforms;
1752 bills to customers who possess smart meters;

1753 (ii) notify all smart meter customers via text message when the electric distribution
1754 company's "Energy Bill Watch" program is available for customers and include in the
1755 notification the choice to opt out of the program. If the electric distribution company does not
1756 possess a smart meter customer's mobile telephone number, the electric distribution company
1757 shall send the notification via electronic mail;

1758 (iii) automatically enroll all smart meter customers in the program; and
1759 (iv) include in a customer's first notice guidance on how the customer can customize
1760 notifications or opt out of the "Energy Bill Watch" program.

1761 (c)(1) A distribution company shall include, at a minimum, the following information in
1762 each bill issued to a customer:

1763 (i) the dollar amount charged to the customer by the distribution company in the previous
1764 billing cycle;

1765 (ii) the dollar amount charged to the customer by the distribution company in the current
1766 billing cycle; and

1767 (iii) the difference between the amount charged in the previous billing cycle and the
1768 current billing cycle.

1769 (2) A distribution company shall include, within each dollar amount required in each bill
1770 pursuant to subsection (a) of this section, any tariffs, fees, or taxes, including, but not limited to,
1771 charges for the supply and distribution of electricity, third-party supplier services, and public
1772 policy programs.

1773 SECTION 67. Section 138 of said chapter 164, as so appearing, is hereby amended by
1774 striking out the definition of "Class I net metering credit" and inserting in place thereof the
1775 following definition:-

1776 "Class I net metering credit", a credit equal to the excess kilowatt-hours by time of use
1777 billing period, if applicable, multiplied by the sum of the distribution company's: (i) default
1778 service kilowatt-hour charge in the ISO-NE load zone where the customer is located; (ii)

1779 distribution kilowatt-hour charge; and (iii) transmission kilowatt-hour charge; provided,
1780 however, that this shall not include the demand side management and renewable energy kilowatt
1781 hour charges set forth in sections 19 and 20 of chapter 25; and provided further, that credit for a
1782 Class I net metering facility that is not an agricultural net metering facility or that is not using
1783 solar, anaerobic digestion or wind as its energy source shall be the average monthly clearing
1784 price at the ISO-NE.

1785 SECTION 68. Said section 138 of said chapter 164, as so appearing, is hereby further
1786 amended by striking out the definition of “Class II net metering credit” and inserting in place
1787 thereof the following definition:-

1788 “Class II net metering credit”, a credit equal to the excess kilowatt-hours by time of use
1789 billing period, if applicable, multiplied by the sum of the distribution company’s: (i) default
1790 service kilowatt-hour charge in the ISO-NE load zone where the customer is located; (ii)
1791 distribution kilowatt-hour charge; and (iii) transmission kilowatt-hour charge; provided,
1792 however, that this shall not include the demand side management and renewable energy kilowatt
1793 hour charges set forth in sections 19 and 20 of chapter 25.

1794 SECTION 69. Said section 138 of said chapter 164, as so appearing, is hereby further
1795 amended by striking out the definition of “Class III net metering credit” and inserting in place
1796 thereof the following definition:-

1797 “Class III net metering credit”, a credit equal to the excess kilowatt-hours by time of use
1798 billing period, if applicable, multiplied by the sum of the distribution company’s: (i) default
1799 service kilowatt-hour charge in the ISO-NE load zone where the customer is located; and (ii)
1800 transmission kilowatt-hour charge; provided, however, that for a Class III net metering facility of

1801 a municipality or other governmental entity, the credit shall be equal to the excess kilowatt-hours
1802 multiplied by the sum of (i) and (ii) and the distribution kilowatt-hour charge; and provided
1803 further, that this shall not include the demand side management and renewable energy kilowatt
1804 hour charges set forth in sections 19 and 20 of chapter 25.

1805 SECTION 70. Said section 138 of said chapter 164, as so appearing, is hereby further
1806 amended by striking out the definition of “Market net metering credit” and inserting in place
1807 thereof the following definition:-

1808 “Market net metering credit”, (i) a credit equal to 60 per cent of the excess kilowatt-hours
1809 by time of use billing period, if applicable, multiplied by the sum of the distribution company’s:
1810 (a) default service kilowatt-hour charge in the ISO–NE load zone where the customer is located;
1811 (b) distribution kilowatt-hour charge; and (c) transmission kilowatt-hour charge; provided,
1812 however, this shall not include the demand side management and renewable energy kilowatt hour
1813 charges set forth in sections 19 and 20 of chapter 25; or (ii) for net metering facilities of a
1814 municipality or other governmental entity, a credit equal to the excess kilowatt-hours by time of
1815 use billing period, if applicable, multiplied by the sum of the distribution company’s: (a) default
1816 service kilowatt-hour charge in the ISO-NE load zone where the customer is located; (b)
1817 distribution kilowatt-hour charge; and (c) transmission kilowatt-hour charge; provided, however,
1818 that this shall not include the demand side management and renewable energy kilowatt-hour
1819 charges set forth in said sections 19 and 20 of said chapter 25; and, provided further, that credits
1820 shall only be allocated to an account of a municipality or government entity.

SECTION 71. Said section 138 of said chapter 164, as so appearing, is hereby further amended by striking out the definition of “Neighborhood net metering credit” and inserting in place thereof the following definition:-

“Neighborhood net metering credit”, a credit equal to the excess kilowatt-hours by time of use billing period, if applicable, multiplied by the sum of the distribution company’s: (i) default service kilowatt-hour charge in the ISO–NE load zone where the customer is located; and (ii) transmission kilowatt-hour charge; provided, however, that this shall not include the demand side management and renewable energy kilowatt-hour charges set forth in sections 19 and 20 of chapter 25.

SECTION 72. Said Section 138 of said Chapter 164, as so appearing, is hereby further amended by inserting after the definition of “Solar Net Metering Facility” the following 2 definitions:-

“Supply Rate Net Metering Facility”, a Class I, Class II, or Class III net metering facility, or neighborhood net metering facility, that is authorized to interconnect to the distribution system by a distribution company on or after 90 days from the effective date of this bill, and that is not a cap exempt facility pursuant to subsection (i) of section 139; provided that a Class I, Class II, or Class III net metering facility, or neighborhood net metering facility that submitted an interconnection application to a distribution company before November 1, 2025 shall not be a Supply Rate Net Metering Facility.

“Supply rate net metering credit”, a credit equal to the excess kilowatt-hours by time of use billing period, if applicable, multiplied by the difference between the distribution company’s default service kilowatt-hour charge in the ISO–NE load zone where the customer is located and

1843 the distribution company's costs associated with: (i) the renewable energy portfolio standard
1844 requirements established pursuant to section 11F of chapter 25A; (ii) the alternative energy
1845 portfolio standard requirements established pursuant to section 11F1/2 of chapter 25A; (iii) the
1846 clean peak portfolio standard requirements established pursuant to section 17 of chapter 25A;
1847 (iv) any portfolio standard requirements established by the Massachusetts department of
1848 environmental protection pursuant to sections 3 and 6 of chapter 21N; and (v) the distribution
1849 company's basic service administrative cost factor.

1850 SECTION 73. Subsection (f) of section 139 of said chapter 164, as so appearing, is
1851 hereby amended by striking out the third sentence.

1852 SECTION 74. Subsection (i) of said section 139 of said chapter 164, as so appearing, is
1853 hereby amended by striking out, in lines 137 to 138, inclusive, and lines 145 to 147, inclusive,
1854 each time they appear, the words "that are not net metering facilities of a municipality or other
1855 governmental entity under subsection (f)".

1856 SECTION 75. Said section 139 of said chapter 164, as so appearing, is hereby amended
1857 by adding the following subsection:-

1858 (m) A supply rate net metering facility shall generate supply rate net metering credits.

1859 SECTION 76. Section 139A of said chapter 164, as so appearing, is hereby amended by
1860 striking out the definition of "Small hydroelectric power net metering facility" and inserting in
1861 place thereof the following definition:-

1862 "Small hydroelectric power net metering facility", a single turbine-generator unit facility
1863 with either a nameplate or demonstrated operational capacity of 2 megawatts or less, using water

1864 to generate electricity that is connected to a distribution company. Separate turbine-generator
1865 units sharing a common point of interconnection or parcel shall not be aggregated to determine
1866 facility capacity.

1867 SECTION 77. Section 141 of said chapter 164, as so appearing, is hereby amended by
1868 striking out the last sentence.

1869 SECTION 78. Said chapter 164, as so appearing, is hereby amended by adding after
1870 section 143 the following section:-

1871 Section 143A. (a) A portable solar generation device shall be exempt from: (i) the
1872 interconnection requirements described in this chapter; (ii) requirements to enter into an
1873 interconnection agreement; and (iii) the net metering program requirements under this chapter.

1874 (b) An electric company may not require a customer using a portable solar generation
1875 device to: (i) obtain the electrical corporation's approval before installing or using the system;
1876 (ii) pay any fee or charge related to the system; or (iii) install any additional controls or
1877 equipment beyond what is integrated into the system. An electric company shall not be liable for
1878 any damage or injury caused by a portable solar generation device.

1879 SECTION 79. Said chapter 164, as so appearing, is hereby amended by adding the
1880 following 6 sections:-

1881 Section 152. (a) The department shall require that distribution companies and gas
1882 companies provide discounted rates for low-income. The cost of such discounts shall be included
1883 in the bills charged to all customers of a distribution company or gas company. Each distribution

1884 company and gas company shall guarantee payment to the generation supplier for all power sold
1885 to low-income customers at the discounted rates.

1886 (b) Eligibility for the low-income discount rates provided for in this section shall be
1887 established in a manner approved by the department, including, but not limited to verification of
1888 a low-income customer's receipt of any means-tested public benefit or verification of eligibility
1889 for the home energy assistance program, or its successor program, for which eligibility does not
1890 exceed 200 per cent of the federal poverty level based on a household's gross income. Such
1891 public benefits may include, but shall not be limited to including, assistance that provides cash,
1892 housing, food or medical care including, but not limited to, transitional assistance for needy
1893 families, supplemental security income, emergency assistance to elders, disabled and children,
1894 food stamps, public housing, federally-subsidized or state-subsidized housing, the home energy
1895 assistance program, veterans' benefits and similar benefits. In a program year in which
1896 maximum eligibility for the home energy assistance program, or its successor program, exceeds
1897 200 per cent of the federal poverty level, a household that is income eligible for the home energy
1898 assistance program shall be eligible for the low-income discount rates required by this
1899 subparagraph. Following initial verification of eligibility for the low-income discount rate,
1900 eligibility may be reevaluated no less than every two years thereafter.

1901 (c) Each distribution company and gas company shall conduct substantial outreach efforts
1902 to make the low-income discount available to eligible customers. Outreach may include
1903 establishing an automated program of matching customer accounts with lists of recipients of said
1904 means-tested public benefit programs and, based on the results of said matching program, to
1905 presumptively offer a low income discount rate to eligible customers so identified; provided,
1906 however, that the distribution company or gas company, within 60 days of said presumptive

1907 enrollment, informs any such low-income customer of said presumptive enrollment and all rights
1908 and obligations of a customer under said program, including the right to withdraw from said
1909 program without penalty.

1910 (d) A residential customer eligible for low-income discount rates shall receive the service
1911 on demand. Each distribution company and gas company shall periodically notify all customers
1912 of the availability and method of obtaining low-income discount rates.

1913 (e) Each distribution company and gas company shall produce information, in the form of
1914 a mailing, webpage or other approved method of distribution, to their consumers, to inform them
1915 of available rebates, discounts, credits and other cost-saving mechanisms that can help them
1916 lower their monthly utility bills and send out such information semi-annually, unless otherwise
1917 provided by this chapter.

1918 (f) There shall be no charge to any residential customer for initiating or terminating low-
1919 income discount rates when said initiation or termination request is made after a regular meter
1920 reading has occurred and the customer is in receipt of the results of said reading.

1921 (g) The department may promulgate rules and regulations as necessary to implement this
1922 section.

1923 Section 153. (a) Gas companies may develop programs to build, own, and operate
1924 geothermal heat loops for individual customers in their existing service territories. companies
1925 shall consider prioritizing commercial customers that currently receive all or a significant
1926 amount of their energy from natural gas-powered combined heat and power facilities.

1927 (b) Gas companies shall file program proposals under this section with the department of
1928 public utilities no later than July 1, 2026, and the department shall complete its review of said
1929 proposals by January 31, 2027.

1930 (c) A gas company shall recover all prudently incurred costs of offering a program
1931 approved by the department of public utilities pursuant to this section via tariffs designed to
1932 recover costs via rates charged to participating customers.

1933 Section 154. The department shall have supervision of facilities operated by gas
1934 companies for the purpose of ensuring public safety pertaining to the construction and operation
1935 of utility-scale non-emitting thermal energy, including networked geothermal and deep
1936 geothermal energy and equipment used in manufacturing and transportation thereof. The
1937 department shall keep itself informed as to the methods, practices, and condition of all facilities
1938 and equipment associated with utility-scale non-emitting thermal energy, including networked
1939 geothermal and deep geothermal energy, and shall make such examinations and investigations as
1940 necessary, including the adequacy of operation, maintenance and capital improvements to ensure
1941 safe operation thereof. After holding technical conferences and receiving public input, the
1942 department may promulgate regulations to implement this section, upon determination that such
1943 regulations are necessary.

1944 Section 155. Every gas company shall develop, and periodically amend, a comprehensive
1945 just transition plan, which must be included as part of any climate compliance plan submission
1946 directed by the department. In determining the reasonableness of a gas company's climate
1947 compliance plan, the department shall consider said company's just transition plan, as provided
1948 for in this section. Once initially filed, such just transition plan shall be amended every two

1949 years, beginning April 1, 2027, and provided as an update in subsequent climate compliance plan
1950 submissions.

1951 Each company plan shall provide projections for any attrition among its in-house
1952 workforce and the utilization of outside contractors over both the two-year period and over the
1953 course of its transition to net zero emissions aligned with a company's climate compliance plan
1954 filings or its complete retirement of its gas pipeline, whichever is later.

1955 All gas companies must additionally identify, as part of their plan, provisions,
1956 opportunities, and initiatives for training and employment opportunities to workers who may be
1957 displaced by the gas company's compliance with the commonwealth's net zero emissions goals
1958 on the other forms of energy it distributes. This includes, but is not limited to, any agreement
1959 reached with labor organizations representing employees at its gas or alternative fuel operations
1960 or labor organizations representing employees of its outside contractors.

1961 Section 156. (a) For the purposes of this section, flexible interconnection is a process by
1962 which a distribution company allows new customer load to connect and distributed energy
1963 resources to interconnect to the electric distribution grid based on an agreed upon curtailment
1964 schedule or protocols and associated tariff, contract, or technical requirements, as applicable.

1965 (b) Each electric company shall offer a comprehensive flexible interconnection program
1966 designed to enable the efficient connection of new customer loads and to maximize the
1967 deployment of distributed energy resources, while minimizing associated electric infrastructure
1968 costs. Such a program shall: (i) be as consistent as practicable across all distribution company
1969 service territories; (ii) utilize existing technologies and capabilities deployed by the electric

1970 company; and (iii) offer additional solutions over time as the distribution company deploys
1971 additional technologies.

1972 (c) Each distribution company may request modifications to any approved flexible
1973 interconnection program from the department so long as such modifications are presented to
1974 stakeholders impacted by the planned modifications at least three months prior to filing
1975 requested modifications with the department. Upon presenting such modifications to
1976 stakeholders, the distribution company shall, at a minimum: (i) accept comments on the
1977 modifications; (ii) allow stakeholders to propose modifications; (iii) develop consensus language
1978 among that group, to the extent possible; and (iv) include in their filing a summary of all
1979 alternative proposals provided by stakeholders and an explanation of why the distribution
1980 company did not choose to adopt such proposals. Each distribution company shall include a list
1981 of the stakeholders that provided feedback in its filing.

1982 Section 157. (a) For the purposes of this section, the following words shall have the
1983 following meanings unless the context clearly requires otherwise:

1984 “Bidirectional electric vehicle” means an electric vehicle that is capable of both receiving
1985 and discharging electricity.

1986 “Electric vehicle supply equipment” or “EVSE” means a device or system designed and
1987 used specifically to transfer electrical energy between an electric vehicle and the electric grid.

1988 “V2G AC” refers to a bidirectional electric vehicle that discharges AC power from the
1989 vehicle by converting DC energy from the battery to AC power via an onboard inverter.

1990 “V2G DC” refers to a bidirectional electric vehicle that discharges DC power from the
1991 vehicle which is then converted to AC power via an offboard inverter.

1992 “Vehicle-to-grid system” or “V2G system” is a combination of hardware and software in
1993 or around the EVSE and bidirectional electric vehicle that forms a distributed energy
1994 resource system (DER) as defined in Title XXII, Chapter 164, Section 1, for the purposes
1995 of communication with and programmed flow of energy into an out of the vehicle battery in
1996 support of electrical loads or systems offboard the electric vehicle, including the electric grid.

1997 “V2G system interconnection” means a process by which a distribution company allows
1998 a V2G system to interconnect to the electric distribution grid for the purpose of operating
1999 in parallel with the grid.

2000 (b) Each distribution company shall offer a comprehensive process for the
2001 interconnection of a V2G system at residential buildings. Such a process shall:

2002 (i) provide a pathway for interconnection for V2G systems supporting V2G AC and V2G
2003 DC electric vehicles;

2004 (ii) utilize standards promulgated by Nationally Recognized Testing Laboratories
2005 including but not limited to UL 1741 CRD for Grid Support DER Systems and UL 1741 SC;

2006 (iii) be as consistent as practicable across all distribution company service territories;

2007 (iv) not require an interconnection application or interconnection agreement for
2008 bidirectional electric vehicles and associated EVSE that that are not configured to operate
2009 in parallel with the grid; and

2010 (v) utilize best practices from comprehensive V2G system interconnection processes
2011 adopted by other states and utilities, as practicable.

2012 (c) Within two months of the effective date of this act, the department of public utilities
2013 shall issue guidance to the distribution companies as needed regarding the development of the
2014 V2G system interconnection process.

2015 (d) Within six months of the effective date of this act, the distribution companies shall
2016 file proposed tariff provisions or tariff revisions and any other documents necessary to
2017 implement the required V2G system interconnection process with the department.

2018 (e) Prior to making the filing under subsection (d), the distribution companies shall:

2019 (i) Convene a vehicle-to-grid industry stakeholder working group facilitated by one
2020 individual from such industry and one individual from a distribution company. The
2021 working group must include, in total:

2022 (a) two representatives from each electric distribution company;

2023 (b) one or more representatives from both the department of energy resources and the
2024 office of the attorney general; and

2025 (c) six representatives from the vehicle-to-grid industry or organizations representing
2026 such industry.

2027 The working group shall meet at least twice per month starting one month after the
2028 effective date of this act.

(ii) Present draft versions of the documents to be included in the filing required under subsection (d) to the working group within four months of the effective date of this act, accept written and oral comments, allow stakeholders to propose modifications, and develop consensus language, to the extent possible. The distribution companies shall include such comments and any alternative proposals supported by working group members as a supplement to the filing required under subsection (d) and an explanation of why the distribution company did not choose to adopt such proposals.

(f) Upon receipt of the filing required under subsection (d), the department shall conduct a proceeding to investigate the V2G system interconnection proposal and approve, deny, or modify such proposal within 1 year of the effective date of this act. A V2G system proposal filed pursuant to subsection (d) shall be deemed approved if the department does not issue an order on or before such date.

SECTION 80. Chapter 503 of the acts of 1982 is hereby repealed.

SECTION 81. Section 83B of chapter 169 of the acts of 2008, as inserted by section 12 of chapter 188 of the acts of 2016, as most recently amended by section 60 of chapter 179 of the acts of 2022, is hereby further amended by striking out the definition of “Firm energy delivery” and inserting in place thereof the following definition:-

“Firm energy delivery,” dispatchable non-emitting energy provided in a long-term contract with guaranteed continuous availability at rated power for one or more discrete multi-day periods of extreme heat and cold weather, low non-dispatchable power production, or other grid contingencies, as designated by the department of energy resources, to ensure electric reliability and security in a zero-carbon electric system; provided, however, that “firm energy

2051 delivery” may include, but shall not be limited to, energy from multiple non-emitting energy
2052 generation resources, surplus interconnection service and energy storage systems managed in a
2053 coordinated manner, in addition to other market services.

2054 SECTION 82. Said section 83B of said chapter 169, as so amended, is hereby further
2055 amended by inserting after the definition of “Offshore wind generation” the following
2056 definition:-

2057 “Surplus interconnection service”, a form of interconnection service that allows a
2058 generation facility to use any unused capability, as such term is defined in Schedule 22 to the
2059 ISO-New England Tariff , established in an interconnection agreement for an existing generating
2060 facility that has achieved commercial operation such that if surplus interconnection service is
2061 utilized, the total amount of interconnection service at the same point of interconnection, as such
2062 term is defined in Schedule 22 to the ISO-NE Tariff , would remain the same; provided however,
2063 that the department shall amend the definition of “surplus interconnection service”, and any
2064 terms therein, so that it conforms to subsequently adopted modifications to the references
2065 Schedule of the ISO-New England Tariff.

2066 SECTION 83. Subsection (b) of section 83C of said chapter 169, as inserted by section
2067 12 of chapter 188 of the acts of 2016, as most recently amended by section 61 of chapter 179 of
2068 the acts of 2022, is hereby further amended by striking out, the first time it appears, the figure
2069 “2027” and inserting in place thereof the following figure:- 2029

2070 SECTION 84. Subsection (c) of section 83C of said chapter 169, as inserted by section
2071 12 of chapter 188 of the acts of 2016, as most recently amended by section 61 of chapter 179 of

2072 the acts of 2022, is hereby further amended by inserting after the word “costs”, the following
2073 words:-, including surplus interconnection service.

2074 SECTION 85. Said subsection of said section 83C, as so amended, is hereby further
2075 amended by inserting after the word “delivery”, the following words:- , including surplus
2076 interconnection service.

2077 SECTION 86. Subsection (e)(1) of said of section 83C, as so amended, is hereby further
2078 amended by inserting after the word “costs”, the second time it appears, the following words:- ,
2079 including surplus interconnection service costs.

2080 SECTION 87. Said subsection of said section 83C, as so amended, is hereby further
2081 amended by inserting after the word “possible”, the following words:- , including the use of
2082 surplus interconnection service,.

2083 SECTION 88. Subsection (c) of section 83E of said chapter 169, as inserted by section 98
2084 of chapter 239 of the acts of 2024, is hereby amended by inserting after the word “locations”, the
2085 following words:- and the efficient utilization of existing transmission infrastructure by the use
2086 of surplus interconnection service.

2087 SECTION 89. Sections 34 and 112 of chapter 8 of the Acts of 2021 are hereby repealed.

2088 SECTION 90. (a) Within 60 days of the effective date of this act, the department of
2089 public utilities shall issue guidance to the distribution companies as needed regarding the
2090 development of the flexible interconnection program required by section 156 of General Laws,
2091 as inserted by section 79.

(b) Within 180 days of the effective date of this act, the distribution companies shall file proposed model tariff provisions or tariff revisions and any other documents necessary to implement the required flexible interconnection program with the department.

(c) Prior to making the filing under subsection (b), the distribution companies shall:

(1) Convene a distributed energy resource industry stakeholder working group facilitated by 1 individual from such industry and 1 individual from a distribution company. The working group must include, in total: (i) 2 representatives from each electric distribution company; (ii) 1 or more representatives from both the department of energy resources and the office of the attorney general; and (iii) 6 representatives from the distributed energy resource industry, of which at least 1 representative will be from an organization representing hydropower generation in the commonwealth. The working group shall meet at least twice per month starting 30 days after the effective date of this act.

(2) Present draft versions of the documents to be included in the filing required under subsection (b) to the working group within 120 days of the effective date of this act, accept written and oral comments, allow stakeholders to propose modifications, and develop consensus language, to the extent possible. The distribution companies shall include any alternative proposals supported by a majority of working group members as a supplement to the filing required under subsection (b) and an explanation of why the distribution company did not choose to adopt such proposals.

(3) Present draft versions of the documents to be included in the filing required under subsection (b) to the stakeholder group established in section 79, within 120 days of the effective date of this act, accept written and oral comments and allow stakeholders to propose

2114 modifications. The distribution companies shall include such comments and proposed
2115 modifications with the filing required under subsection (b).

2116 (d) Upon receipt of the filing required under subsection (b), the department shall conduct
2117 a proceeding to investigate the flexible interconnection program proposal and approve, deny, or
2118 modify such proposal within one year of the effective date of this act. A flexible interconnection
2119 program proposal filed pursuant to subsection (b) shall be deemed approved if the department
2120 does not issue an order on or before such date.

2121 SECTION 91. Each electric company shall submit a supplement to the electric-sector
2122 modernization plan approved by the department not later than one year after the effective date of
2123 this Act. The supplement shall include the changes to subsections (c) and (d) of section 92B of
2124 chapter 164 of the General Laws made pursuant to Section 57. An electric company shall consult
2125 with the Grid Modernization Advisory Council established in section 92C of said chapter 164 of
2126 the General Laws no later than 120 days before the electric company files the supplement with
2127 the department; and provided further that the Grid Modernization Advisory Council shall return
2128 the supplement to the company with recommendations not later than 70 days before the company
2129 files the plan with the department.

2130 SECTION 92. (a) Notwithstanding chapter 21N of the General Laws or any other general
2131 or special law to the contrary, when issuing a statement as to whether the commonwealth has
2132 complied with the 2030 statewide greenhouse gas emissions limits, in the instance that the state
2133 has not met said limits, the secretary of energy and environmental affairs shall include a formal
2134 assessment regarding the primary cause for non-compliance. If said cause is attributed to the
2135 actions or inactions of the federal government, then the interim statewide greenhouse gas

2136 emissions limits and sublimits established for 2030 pursuant to said chapter 21N of the General
2137 Laws shall be advisory in nature and unenforceable by or against the commonwealth or any other
2138 person.

2139 (b) Notwithstanding chapter 21N of the General Laws or any other general or special law
2140 to the contrary, failure of the commonwealth to achieve the interim statewide greenhouse gas
2141 emissions limits or sublimits established for 2030 pursuant to said chapter 21N of the General
2142 Laws, as determined pursuant to subsection (a), or failure of the commonwealth, including but
2143 not limited to its departments, agencies, authorities, commissions, political subdivisions, and
2144 their officers, employees, or agents, to promulgate regulations or adopt policy in pursuit of said
2145 greenhouse gas emissions limits and sublimits shall not (i) give rise to any cause of action by any
2146 person against the commonwealth, (ii) entitle any person to declaratory relief under sections 1
2147 and 2 of chapter 231A of the General Laws, or (iii) entitle any person to relief in the nature of
2148 mandamus under section 5 of chapter 249 of the General Laws.

2149 SECTION 93. Notwithstanding any special law to the contrary, where the commonwealth
2150 or any political subdivision thereof proffers land within its control by lease or ownership and
2151 sub-leases or conveys such land to an end user, developer, or operator public lands for the
2152 construction, operation, or maintenance of a thermal energy network, heat loop and related
2153 renewable energy generation, distribution, and transmission infrastructure project work, those
2154 leases or conveyances shall be conditioned upon the lessee or awardee's agreement to enter into
2155 fully executed labor peace agreements with any bona fide labor organization that seeks to
2156 represent the lessee or awardee's employees working on the project, as permitted by federal law.

2157 Likewise, any funding, including grants and loans made by the commonwealth, including
2158 but not limited to those made through the Massachusetts clean energy technology center under
2159 chapter 23J, to support the construction, operation, or maintenance of a thermal energy network
2160 or heat loop within the commonwealth shall be conditioned upon the recipient's agreement to
2161 enter into a fully executed labor peace agreement with any bona fide labor organization that
2162 seeks to represent the recipient's employees working on the project as their exclusive bargaining
2163 representative, as permitted by federal law.

2164 SECTION 94. Notwithstanding any general or special law, rule or regulation to the
2165 contrary, any new building construction or major renovation project within a municipality that
2166 has been approved to participate in the municipal fossil fuel-free demonstration program
2167 pursuant to 225 C.M.R 24.00, shall not be eligible to receive incentives that promote the
2168 construction of all electric residential homes from programs developed pursuant to paragraph 2
2169 of section 21 of chapter 25 of the general laws.

2170 SECTION 95. (a) Notwithstanding any general or special law, rule or regulation to the
2171 contrary, program administrators of the approved energy efficiency plan, authorized under
2172 chapter 25, shall require household income verification for all eligible customers and renters in
2173 designated equity communities, as designated pursuant to the 2025-2027 three-year plan and any
2174 future three-year plan, to qualify for comprehensive low- and moderate-income rebates and
2175 incentives.

2176 (b) To qualify for comprehensive low- and moderate-income rebates and incentives under
2177 subsection (a), a landlord of a rental property located in a designated equity community shall
2178 provide sufficient documentation to the program administrators demonstrating that not less than

2179 50 per cent of the occupied dwelling units in the property are rented to households that meet the
2180 applicable income eligibility requirements.

2181 SECTION 96. (a) Notwithstanding any general or special law, rule or regulation to the
2182 contrary, high voltage transmission line installations on highways with full control of access
2183 shall be permitted and may be constructed, placed, or maintained across any public right of way
2184 or along any highway, freeway, federally aided state highway, controlled access highway,
2185 interstate highway, or roadway, except as deemed necessary by the secretary of transportation to
2186 protect public safety or ensure the proper function of the highway. The utility owner shall in each
2187 case submit an application to the energy facilities siting board and department of transportation
2188 that demonstrates: (i) the accommodation will not adversely affect the safety, durability,
2189 construction, traffic operations, maintenance, or service life of the highway, (ii) the
2190 accommodation will not unduly interfere with or impair the present use or future expansion of
2191 the highway; (iii) access for constructing and servicing utility facility will not adversely affect
2192 safety and traffic operations or damage any highway facility; (iv) consideration is given to
2193 planned future expansion of the highway; and (v) consideration is given to ensuring the
2194 accommodation meets the criteria pursuant to subsection (b).

2195 When a permissible route along a highway corridor has been identified by the department
2196 of transportation and the utility owner or developer, a constructability, access and maintenance
2197 report shall be prepared by the utility owner or developer. The department of transportation shall
2198 engage in consultation with the utility owner or developer in the creation of the report and shall
2199 include the terms and conditions for building the co-location project. Included within the report
2200 shall be an agreed upon timeframe for which there will not be any request by the department of
2201 transportation for relocation of the transmission line. If the department of transportation needs a

2202 transmission line in its right-of-way relocated, it shall give the utility a 10-year advance notice.
2203 The report must be approved by both parties prior to the department of transportation issuing a
2204 permit for use of the highway right-of-way.

2205 In all cases of new longitudinal utility accommodations, whether for highways or non-
2206 highways, the utility owner shall obtain a highway access permit and install the utility facility in
2207 accordance with the approved permit.

2208 If the energy facilities siting board denies a high voltage electric line co-location request,
2209 the reasons for the denial must be submitted for to the department of transportation, the
2210 department of public utilities, and made publicly available, within 90 days of the denial.

2211 (b) In the siting of new electric transmission facilities, including high-voltage
2212 transmission lines, it is the policy of this state that the following corridors shall be considered in
2213 the following order of priority:

- 2214 (i) Existing utility corridors,
2215 (ii) highway (interstate, freeway and state highways) and railroad corridors; and
2216 (iii) new corridors.

2217 Permitting on priority corridors shall be done to the greatest extent feasible that is
2218 consistent with but limited to the following criteria: (i) economic and engineering considerations,
2219 (ii) reliability of the electric system, (iii) public safety, (iv) and the protection of the
2220 environment.

2221 SECTION 97. Paragraph (4) of subsection (d) of section 21 of chapter 25 of the General
2222 Laws, as inserted by Section 9 of this Act, shall take effect upon its passage and apply to energy
2223 efficiency plans beginning with the 2028 to 2030 plan.

2224 SECTION 98. By July 1, 2026, electric distribution companies, municipal aggregators
2225 and natural gas companies with energy efficiency investment plans approved by the department
2226 of public utilities pursuant to section 21 of chapter 25 of the General Laws, as so appearing, shall
2227 prospectively reduce budget spending in the 2025-2027 energy efficiency plan in the following
2228 manner: (i) the remaining 2025-2027 residential sector energy efficiency and electrification
2229 program budgets shall be reduced by \$180,000,000 in the aggregate to better align the 2025-2027
2230 statewide residential sector budget with the 2024 residential sector statewide budgets approved in
2231 the final order issued by the department in the 2022-2024 plan dockets on January 31, 2022.
2232 Such revised 2025-2027 term budgets shall maintain funding for low-income incentives
2233 committed to customers as of December 31, 2025; the remaining 2025-2027 three-year budget
2234 plan for marketing and advertising shall be reduced by not less than 50 per cent or \$97,500, 000,
2235 whichever is greater, excluding the approved marketing and advertising budgets allocated to: (a)
2236 community first partnerships; (b) language access; (c) the statewide contact center; (d) workforce
2237 development; and (e) the maintenance of websites to support the Mass Save program and Mass
2238 Save data; and (iii) the remaining 2025-2027 three-year budget plan for administrative costs shall
2239 be reduced by not less than \$50 million.

2240 SECTION 99. Sections 1 to 2B, inclusive, 9 to 10A, inclusive, 11, 13, and 22 of chapter
2241 142A of the General Laws, as amended by this Act, shall apply to residential solar electric
2242 system agreements entered into on or after 180 days after the enactment of this Act.

2243 SECTION 100. Paragraph (1) of subsection (b) of section 23 of chapter 25A of the
2244 General Laws, as inserted by Section 21 of this Act, shall take effect no later than 1 year after the
2245 enactment of this Act.

2246 SECTION 101. A permit granting authority that implements an alternative automated
2247 solar permitting platform pursuant to paragraph (1) of subsection (c) of section 23 of chapter
2248 25A of the General Laws, as inserted by Section 21 of this Act, shall notify the department of
2249 energy resources of its intention to do so within 1 year of the enactment of this Act, and shall
2250 enable access to the alternative platform within 18 months of the enactment of this Act.

2251 SECTION 102. A permit granting authority that allows submission of residential solar
2252 permit applications through the state automated platform pursuant to paragraph (1) of subsection
2253 (b) of section 23 of chapter 25A of the General Laws, as inserted by Section 21 of this Act, shall
2254 revise its permitting fee schedule to reflect the reduction in resources expended to permit
2255 residential solar energy systems within 2 years of the effective date of this Act.

2256 SECTION 103. The department of public utilities shall direct the gas and electric
2257 distribution companies to commence the coordinated initiative pursuant to subsection (b) of
2258 Section 94 of chapter 164 of the General Laws, as inserted by Section 61 of this act, not later
2259 than 60 days after the effective date of this act.

2260 SECTION 104. Section 65 of this Act shall take effect on November 1, 2026.

2261 SECTION 105. Within 90 days of this Act's enactment, each electric distribution
2262 company in the Commonwealth deploying advanced metering infrastructure in their territories to
2263 record customers' electricity usage information shall establish an "Energy Bill Watch" program

2264 pursuant to the new section 116C of chapter 164 of the General Laws, as inserted by Section 66
2265 of this Act.